

Natural and Positive, Divine and Human Law

*Sources, historical development,
and responsible action across legal orders*

A philosophical, theological, historical, and canonical study

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1 The Problem: A Person before Several Orders of Law

Terms such as “natural law,” “positive law,” “divine law,” and “human law” classify different features of a norm. None, standing alone, tells a person what must be done. A source may establish the moral measure of an act without supplying a civil remedy. A valid civil rule may produce legal effects while commanding something morally impermissible. An ecclesiastical norm may be human and mutable yet bind its subjects until it is lawfully changed, dispensed, or set aside. Before drawing a practical conclusion, one must identify the exact norm, its author and rank, the persons and conduct within its scope, the forum in which it operates, and the kind of effect it claims.

This study therefore asks two connected questions. First, how are natural and positive law related to divine and human law, and how did Greek philosophy, Roman jurisprudence, Scripture, patristic thought, canonistic practice, scholastic theology, modern jurisprudence, and Catholic teaching shape that vocabulary? Second, how should a person account for duties arising at once from moral law, divine revelation, civil law, canon law, office, status, contract, and other particular commitments?

Governing thesis

The familiar pairs do not yield four coequal species or sources. Natural law is rooted in the created rational order and is knowable in principle by human reason; in that ultimate sense it has God as author, although Aquinas ordinarily reserves “divine law” in his fourfold scheme for the revealed Old and New Law. Divine positive law is freely revealed in salvation history. Human positive law is enacted or received by competent civil or ecclesiastical authority. “Human natural law” can describe a person’s knowledge, formulation, or positive recognition of a natural norm, but not a separately authored source of obligation. The practical point is equally important: civil and ecclesiastical orders overlap, but they do not form one human chain of command. A responsible subject must determine what each order actually requires, distinguish moral obligation from juridical validity and consequence, harmonize concurrent duties where possible, use competent remedies, and refuse compliance when a well-formed and certain judgment of conscience concludes that the commanded act is morally impermissible. Subjective certainty does not by itself erase external legal effects or supply a dispensation.

1.1 The paper’s fundamental claim

The taxonomy serves responsible agency. It is not an exercise in arranging abstract labels. A person may simultaneously be a rational creature, a baptized member of a Church *sui iuris*, a resident or citizen of a state, a spouse or parent, an officeholder, a member of an institute or association, an employee, a fiduciary, a party to a contract, and the addressee of an administrative act. Each status, capacity, or legal relation can bring distinct duties, rights, interpretive authorities, procedures, and remedies into the account. Some rules govern the same conduct for different reasons. Others govern only one legal effect.

There is therefore no universal shortcut such as “higher law cancels lower law” or “civil law controls temporal matters.” Higher law measures and limits lower authority, but its juridical consequences depend on the legal order and competent forum. Civil and ecclesiastical authorities can possess distinct competence over different aspects of one act. A sound account must answer three questions in order: *What norms apply? What binds in conscience? What action, remedy, or refusal is now required?*

This approach avoids two different errors. The first treats positive validity as sufficient for moral obligation. The second treats a sincerely asserted higher-law claim as self-executing and thereby bypasses jurisdiction, evidence, the rights of others, and lawful process. Catholic jurisprudence requires an objective moral measure and responsible institutions; neither can do the work of the other.

1.2 Reader, genre, and source boundary

This is a discursive canon-law article with philosophical, historical, scriptural, theological, moral, civil-law, and institutional modules. It is written for canonists and civil lawyers entering a neighboring field, clergy and formators, students of Catholic social thought, and serious readers who need a source-first conceptual map. Ancient texts establish ancient arguments, not present law. Magisterial documents teach according to their genre and authority. Codes, statutes, custom, administrative acts, judgments, agreements, and authentic interpretations have different

juridical effects. Modern scholarship supplies historical and analytical controls; it does not replace controlling law.

1.3 Legal scope block

Field	Controlling scope	Qualification
Governing bodies of law	The 1983 <i>Codex Iuris Canonici</i> (CIC) for the Latin Church; the 1990 <i>Codex Canonum Ecclesiarum Orientalium</i> (CCEO) for the Eastern Catholic Churches; identified universal, common, particular, proper, liturgical, curial, treaty, and Vatican City norms.	The codes are central but not exhaustive. The Catholic Church, Holy See, Roman Curia, and Vatican City State are distinct juridical realities.
Language and translations	The promulgated official Latin texts control for the CIC, CCEO, and Latin promulgating acts. Holy See English pages and identified translations assist the reader. Vatican City legislation is ordinarily cited in its official Italian.	A convenient translation is not silently treated as authoritative. Ancient translations are witnesses, not substitutes for critical texts where wording is disputed.
Persons and jurisdiction	The universal Church; the Latin Church and Eastern Catholic Churches <i>sui iuris</i> ; their competent authorities and subjects; and civil polities insofar as civil law binds Catholics or interacts with canon law.	Baptism, ascription, age and use of reason, domicile, territory, office, institute membership, legal capacity, particular law, and the facts of an act can change the governing norm.
Currentness	Current universal and common ecclesiastical law and institutional sources checked through 16 July 2026. The 2022 curial constitution, 2023 Vatican Fundamental Law, 2024 Signatura amendment, 2025 curial and Vatican acts, and identified 2026 rescripts and particular Roman legislation were reviewed.	No later amendment to the central boundary canons discussed here was located. An archive search cannot establish the absence of unpublished particular or proper law.
Authority and forum	Legislative, executive, judicial, and teaching functions are distinguished. The rank and scope of universal, common, particular, proper, civil, and contractual norms are separately identified.	A theological conclusion is not automatically a penal norm; a decision in one case is not automatically universal law; a curial office does not acquire legislative power merely by issuing a document.
Case boundary	Examples concern ordinary classification problems: violence, marriage, worship, contracts and property, religious liberty, conscience, employment, reporting, and unjust commands.	No example decides a real person's rights, criminal exposure, marital or sacramental status, office, or duty toward a named enactment. Those questions require the complete facts, the controlling civil and ecclesiastical law, and competent advice.

1.4 What “current governing structure” means

The contemporary portion traces a norm from source, competence, and promulgation through interpretation and application to adjudication and remedy. It treats the Roman Pontiff and college of bishops, diocesan and eparchial bishops, Eastern synods, particular councils, Latin episcopal conferences, competent dicasteries, local tribunals, the Roman Rota, the Apostolic Signatura, administrative recourse, concordats, and the distinct civil order of Vatican

City State. It also asks what these structures mean for the person who must act before every institutional question has received a final answer.

This is a *source-audited working article*. Independent review by specialists in ancient philosophy, Roman law, intellectual and institutional history, medieval canon law, moral theology, ecclesiology, Latin and Eastern canon law, public law, conflict of laws, and Church–state relations remains outstanding.

2 Analytical Distinctions: Source, Mode, Authority, and Effect

2.1 The two pairs ask different questions

Natural and *positive* principally distinguish a norm’s rational ground from its authoritative determination or historical giving. *Divine* and *human* principally distinguish authorship or normative source. These questions intersect, but they are not two perfectly symmetrical axes. A single legal proposition may have a naturally intelligible moral ground, a revealed confirmation, and a humanly enacted juridical form. Each description answers a different question.

Principal mode	Ground or source	How it is known as binding	What can change
Natural moral law	The intelligible goods, ends, and relations of human nature within the created order. God is its ultimate author; human reason does not enact it.	Practical reason, conscience, moral inquiry, and sound inference from first principles to acts.	The underlying principles are not repealed by human authority. Knowledge, factual premises, formulations, and applications can be incomplete or mistaken.
Revealed divine law	God’s free self-disclosure and command in salvation history: the Old Law fulfilled in Christ and the New Law.	Revelation received in Scripture and Tradition and authentically proposed by the Church’s teaching office according to the authority of the act.	No human authority authors or abrogates it. Covenant, fulfillment, the scope of a precept, and the distinction between divine institution and human regulation must be established.
Human positive law	A competent human authority or legally capable community determines a rule for a civil or ecclesiastical common good.	Promulgated legislation, legally received custom, a competent administrative act, agreement, judgment, or another recognized juridical source.	It is ordinarily mutable within competence and subject to higher law, rights, purpose, procedure, jurisdiction, and the common good.
Positive recognition of natural or divine law	A human legal order declares, protects, specifies, or supplies remedies for a norm it does not claim to create.	The positive source establishes its juridical formulation and effects; the underlying moral or divine claim requires its own proof.	Procedure, remedy, presumption, terminology, and institutional allocation may change even when the underlying norm does not.

The fourth row is a layered description, not a fourth source. A civil prohibition of intentional killing can embody a natural duty and add definitions, defenses, evidentiary rules, and penalties. A canon can declare a divinely received principle and add a human procedure for determining the relevant facts. It is therefore misleading to classify an entire statute, canon, or judgment with one adjective when its propositions perform different work.

The decisive asymmetry

Natural law has God as ultimate author and is known and applied through human reason; it is not a statute enacted either by God or by humanity. “Divine positive law” identifies what is known because God has revealed it. “Human positive law” identifies a determination whose juridical form comes from competent human authority. “Human natural law” is best reserved, if used at all, for human apprehension or positive recognition of natural justice, not for an independently authored species.

2.2 Eternal law orders the account

In Aquinas, eternal law is divine wisdom governing created reality. Natural law is the rational creature's participation in that order. Human law derives from natural law either as a conclusion or as a determination. Divine law, in the ordinary terminology of *Summa theologiae* I–II q. 91, means the revealed Old and New Law, needed because humanity has a supernatural end and because human judgment and coercive law are limited (qq. 90–97, especially q. 91). Eternal law is thus not a fifth enacted code competing for jurisdiction. It states the ultimate intelligibility and measure of every just order.

This usage requires care. Canonists and theologians can speak more broadly of “divine law” as including natural and positive divine law. Aquinas's fourfold division usually places natural law and revealed divine law in separate terms. This study uses *divine natural law* only when the broader authorship question is material or when a current source itself distinguishes natural from positive divine law.

2.3 *Ius, lex, right, and obligation*

Latin *ius* is broader than enacted *lex*. Depending on author and period, *ius* can designate what is just, a person's right, a juridical relation, a body of law, or juristic learning. *Lex* more often designates a rule or enactment, although theological usage is wider. Greek *nomos* can mean custom, usage, convention, or statute; *physis* means nature. Aristotle's *dikaion physikon* is natural justice or right, not a finished scholastic account of *lex naturalis*. Translation must therefore follow the source's own legal world.

This article uses:

- **law** for a norm or juridical order, with the intended sense specified;
- **right** for what is due to a person, a protected freedom or claim, or the just relation itself;
- **obligation** for a reason that binds a person to act or refrain, with moral and juridical obligation kept distinct;
- **positive** for what is authoritatively posited or historically given, not for what is morally desirable;
- **natural** for rational moral normativity grounded in human goods and ends, not physical regularity, instinct, or preference;
- **divine law** with an express distinction between natural authorship and revealed positive law where the context requires it; and
- **ecclesiastical law** for norms in the Church's juridical order, without presuming that every such norm is merely human or, conversely, divinely immutable.

2.4 Classification attaches to an exact proposition and effect

Suppose a marriage canon declares a received norm of indissolubility, defines a presumption, assigns a tribunal, and fixes a procedural period. The document is ecclesiastical legislation, but its propositions need not have the same source, necessity, subjects, or susceptibility to dispensation. Conversely, a natural-law conclusion does not by itself establish a filing period, a standard of proof, a civil cause of action, or a canonical penalty. Those effects require positive law and a competent forum.

Before applying a label, ask:

1. **Object:** What exact act, norm, right, duty, status, penalty, procedure, or legal effect is being classified?
2. **Claimed source:** Does its authority rest on natural reason, revelation, enactment, custom, agreement, judgment, administrative act, or reception from another order?
3. **Text and proof:** What source establishes the claim, in what language, genre, date, and state of transmission?
4. **Subjects and scope:** Whom does it address, for what conduct, at what time and place, and in which forum?
5. **Competence and rank:** Who may enact, interpret, apply, dispense, derogate, adjudicate, or enforce it?

6. **Effect:** Is the asserted consequence moral obligation, juridical validity, liceity, enforceability, penalty, presumption, remedy, or evidentiary weight?

The classification is a beginning. The person who must act still needs an account of every applicable order and of the practical relation among them. The later sections on personal responsibility and applied dossiers supply that method.

3 A Survey of the Relevant Fields

A study of law's sources can become imprecise by asking one discipline to answer another's question. Philosophy can test whether an enactment is just without establishing whether a tribunal has jurisdiction. A code can establish legal effects without proving the moral adequacy of its rule. History can explain how a category emerged without making an obsolete norm binding today. The table surveys the fields that bear materially on the problem; later sections engage the central philosophical, theological, historical, canonical, civil, and conflict-of-orders perspectives in greater depth. Comparative law and legal sociology remain methodological controls rather than independent surveys.

Field	Principal question	What it cannot establish by itself
Philosophy of law and jurisprudence	What makes a norm law; how authority, reason, social sources, rights, justice, and legal validity are related; how natural-law and positivist theories differ.	The content of revelation, the governing canon or civil statute, the facts of a case, or a competent remedy.
Moral theology and ethics	What a person ought to choose; how conscience, virtue, moral object, intention, circumstances, cooperation, scandal, culpability, and restitution bear on action.	Whether a civil or canonical act is juridically valid, which tribunal is competent, or which positive procedure controls.
Biblical and dogmatic theology	What Scripture and Tradition reveal about creation, covenant, sin, grace, the New Law, the Church's constitution, and the moral and supernatural ends of persons.	A complete philosophy of public law, an inference that every theological conclusion has been enacted, or a present legal holding without the required juridical source.
Intellectual and institutional history	How terms, institutions, jurisdictional claims, and patterns of reception changed; why later writers inherited several nonidentical taxonomies.	A present obligation from antiquity alone, continuity from mere verbal similarity, or rupture from changed terminology alone.
Roman law and the civil-law tradition	How <i>ius</i> , <i>lex</i> , status, jurisdiction, sources, procedure, and remedies operated in Roman and later civilian orders.	A single timeless natural-law theory or automatic applicability to a modern state or to the Church.
Canon law	Which ecclesiastical norms bind which persons; how divine-law claims, universal and particular legislation, custom, administrative acts, rights, offices, processes, penalties, and remedies operate.	Civil status or liability outside a reception rule, or the moral truth of every legally valid ecclesiastical determination.
Civil, constitutional, and administrative law	Which state institutions may act, which norms and rights control, and what civil validity, liability, enforcement, and remedies follow.	Sacramental or canonical status, or a conclusive moral judgment merely from civil validity.
Public international law and concordat law	Which international persons, treaties, jurisdictional immunities, and implementing rules coordinate the Holy See, states, and other actors.	A universal answer without the actual parties, text, territorial scope, ratification, reservations, and domestic implementation.

Field	Principal question	What it cannot establish by itself
Conflict of laws and legal pluralism	Which of several legal orders claims an act or person; how status, territory, choice of law, recognition, and parallel proceedings interact.	A moral ranking of every norm or the assumption that the several orders form one appellate hierarchy.
Procedure, evidence, and remedies	How a claim is proved and decided; which forum can grant relief; what notice, hearing, burden, deadline, appeal, or recourse applies.	The justice of the underlying end merely because procedure was regular, or a remedy that the competent order has not supplied.
Comparative law and legal sociology	How institutions work across communities and in practice, including gaps between texts, enforcement, and lived normativity.	Binding authority in a particular case without the controlling source, or moral legitimacy merely from prevalence.

3.1 Three kinds of priority

The word *hierarchy* can conceal three different relations:

1. **Moral priority.** Natural and revealed moral norms measure human action and the justice of every human enactment. This priority concerns conscience and the limits of legitimate authority.
2. **Normative rank within an order.** A constitution, code, universal law, particular law, administrative act, contract, and judgment can occupy different ranks under that order's own rules. Later, special, or higher norms can prevail only as the governing system provides.
3. **Allocation among orders.** Civil and ecclesiastical jurisdictions can govern different aspects of the same event. Neither is simply an appellate court for the other. Treaty, reception, recognition, or conflict rules may coordinate them; otherwise each forum determines the effects within its competence.

These relations must not be collapsed. A norm can be morally defective yet remain civilly operative until a competent remedy succeeds. A canonically invalid alienation can be civilly effective. A civil divorce can alter civil status while leaving the canonical bond question unresolved. Conversely, civil law can impose duties that canon law does not reproduce, and Catholics can be morally obliged to obey them because just civil authority is real.

3.2 The common analytical path

The fields meet in a disciplined sequence: establish the facts; identify every claimed norm and forum; determine applicability and positive legal effect; assess moral obligation under the applicable natural and revealed norms; then identify the action and remedy appropriate to each order. The sequence is not mechanical. Facts can be contested, natural-law conclusions can require difficult reasoning, and authorities can disagree. Its value is to show where the disagreement lies and what evidence could resolve it.

The rest of the study follows that path. The historical chapters explain why the vocabulary is layered. The doctrinal chapters state the Catholic synthesis. The current-law chapters identify positive sources and authorities. The responsibility chapter and dossiers return the material to the person who must decide and act.

4 Why Law Binds: Reason, Authority, and the Common Good

4.1 Law coordinates free and responsible persons

Aquinas defines law as an ordinance of reason for the common good, made by one who has care of the community, and promulgated (*Summa theologiae* I-II, q. 90, a. 4). The elements are cumulative. A rule does not acquire moral

authority merely because a powerful person wants it. A measure directed to private advantage lacks law's proper public end. Sound counsel is not legislation without competence. A general human law cannot ordinarily bind before promulgation in the manner required by the relevant legal order.

The definition applies analogically, not univocally, to every form of law. God does not receive care of creation from a community, and natural law is not printed in an official journal. Yet reason, the common good, authority, and adequate manifestation explain why law can direct free agents rather than merely cause behavior. Human positive law adds what general moral principles do not supply: common specifications, stable expectations, institutions, procedures for finding facts, remedies, and public accountability.

4.2 Conclusion and determination

Aquinas distinguishes two ways in which human law derives from natural law (I-II, q. 95, a. 2). A *conclusion* draws a more specific moral norm from a general principle. A *determination* chooses one reasonable specification where the principle leaves several possibilities open. The duty to protect life supports prohibitions on unjust killing; it does not by itself fix jurisdiction, grades of offense, evidentiary standards, or sentences. Those questions require positive determination.

Most legislation combines moral inference, empirical judgment, and choice among reasonable means. A safety regulation protects life, estimates risk, sets measurable limits, assigns inspection duties, and establishes enforcement. Error about one technical limit does not show that no natural good is involved. Equally, legislative discretion over the limit does not authorize a measure that defeats the good the regulation is supposed to serve.

4.3 The reach and limits of coercive law

Human law cannot prudently prohibit every vice. Aquinas argues that it should restrain chiefly the graver harms from which social order must be protected and should lead persons toward virtue gradually (I-II, q. 96, aa. 2-3). The claim does not make lesser wrongdoing morally acceptable or determine a policy without facts. It distinguishes the entire moral field from the part that a political community can justly and effectively regulate by coercion.

The distinction also applies within the Church. Canon law serves communion and the salvation of souls, but it does not turn every sin into a delict, every counsel into a precept, or every pastoral judgment into a justiciable right. Penal legality, including the strict conditions for punishment under CIC c. 1399 where no other penal law or precept defines the violation, works together with competence, notice, proof, imputability, prescription, rights of defense, and recourse to protect the persons whose good law must serve.

4.4 Natural-law judgment is an act of practical reason

The first practical principle—good is to be done and pursued and evil avoided—is universal and highly general. Basic human goods and inclinations orient reasoning; concrete judgment also requires accurate facts, sound intermediate premises, virtues, experience, and attention to circumstances. Aquinas distinguishes common principles from increasingly contingent conclusions and notes that passion, bad custom, and faulty reasoning can obscure them (I-II, q. 94, aa. 2, 4-6).

Accordingly, the statement “natural law requires this” carries a burden of explanation. It should identify the good at stake, the principle, the inferential steps, the material facts, possible alternative specifications, and the degree of certainty. Where a claim is also said to be naturally knowable, revelation can confirm it but does not eliminate the need to offer rationally accessible reasons in civil deliberation.

4.5 Promulgation, knowledge, and conscience

Conscience is a person's practical judgment about the act to be chosen. It is neither a private source of moral truth nor a feeling displaced whenever an official commands. A person must seek the truth, form conscience, and follow a judgment held without practical doubt. Culpable and nonculpable error affect responsibility differently; neither

makes the objective character of the act or every external legal consequence depend on sincerity alone. The Catholic account of conscience therefore joins freedom, formation, responsibility, and humility (CCC 1776–1802).

Promulgation makes a positive rule publicly ascertainable, but actual knowledge and responsibility require separate analysis. Legal orders can presume knowledge, excuse nonculpable ignorance, or treat mistake differently according to the kind of act. In Latin canon law, for example, CIC cc. 14–15 govern doubt, ignorance, and error concerning laws and facts, while cc. 1321–1325 separately govern imputability and mistake in penal matters. One must not infer moral culpability merely from juridical effect, or juridical immunity merely from reduced culpability.

4.6 Unjust enactments: six separate conclusions

The maxim that an unjust law is “not law” means that the enactment fails to satisfy law’s proper moral standard; it is not a universal rule of automatic juridical nullity. Aquinas distinguishes defects of end, authority, and distributive justice from commands opposed to divine good, and he also considers scandal and social disturbance (I–II, q. 96, a. 4). Analysis should separate:

1. the moral character of the exact act required or prohibited;
2. the certainty and gravity of the claimed injustice;
3. the rule’s validity and continuing effects within its positive legal order;
4. the person’s moral obligation, including direct refusal where the commanded act is itself evil and, in other cases, possible temporary compliance or forbearance to avoid greater disorder;
5. cooperation, scandal, effects on third parties, and restitution or notice duties; and
6. the lawful or morally required response: interpretation, exemption, recourse, litigation, legislative change, conscientious objection, direct refusal, noncooperation, or civil disobedience.

John Paul II applies these distinctions to enactments attacking innocent human life, direct participation, conscientious objection, and incremental reduction of harm (*Evangelium vitae* 68–74). The application is grave and specific. It does not justify transferring the same conclusion to every contested regulation without a new analysis of object, facts, participation, and remedy.

5 The Person under Overlapping Orders: An Obligation Account

The several orders of law meet in the action of one morally responsible person. Their unity is not a super-code or a single human appellate hierarchy. Natural and revealed norms measure the morality of action; civil and ecclesiastical orders establish juridical effects within their competence; offices, vows, contracts, family relations, and other commitments add role-specific duties. Conscience judges the concrete act, but it does not legislate, dispense, or adjudicate for itself.

5.1 First establish the person, act, and facts

An obligation account begins with the act to be done or omitted, not with an institutional label. Identify the authoritative wording, material facts, relevant time, the person’s actual role, the conduct required, the persons affected, and the foreseeable consequences. A duty to report, a prohibition on disclosure, a sacramental decision, and an employment command may concern the same events while addressing different acts and effects.

Relation to audit	Facts to establish	Why the facts matter
Moral agent	Knowledge, freedom, intention, object of the act, circumstances, alternatives, effects on others, and prior commitments.	Natural moral law has universal objective reach, while responsibility for an act also depends on knowledge and freedom.
Canonical person	Baptism or reception; Latin or Eastern ascription; age and use of reason; domicile, quasi-domicile, presence, traveler or transient status; and proper pastor or ordinary.	CIC cc. 96–112 and CCEO cc. 7, 27–38, 909–919 connect canonical personality and authority to these facts. Eastern ascription does not change merely because an Eastern Catholic is entrusted to a pastor of another Church <i>sui iuris</i> (CCEO c. 38).
Ecclesial condition	Lay, clerical, consecrated, officeholding, institute or association membership, delegation, mandate, vow, sacramental status, and applicable universal, particular, or proper law.	A duty can arise from a condition or validly assumed role even when it does not bind every Catholic. The instrument creating the role and any limits on competence must be verified.
Civil relation	Citizenship, residence, physical presence, age and capacity, family status, license, employment, office, fiduciary role, property, corporate form, and pending process.	Civil jurisdiction and effects are state-specific. Canonical status does not answer civil capacity, liability, reporting, employment, or procedural questions.
Transaction or act	Contract, decree, precept, rescript, privilege, dispensation, judgment, notice, consent, form, and factual trigger.	General law, a singular administrative act, a contract, and a judgment become operative in different ways and can address different persons.

The status map is descriptive, not determinative. It shows which sources must be checked. A person may occupy several roles at once, and an authority competent over one role may lack competence over another.

5.2 Construct a norm ledger

List each potentially applicable norm on its own row. Do not combine a moral principle, a statute, a canon, and an employment instruction into one paraphrase.

Norm and exact source	Claimed subjects and scope	Claimed effect	Authority, forum, and relief
Natural moral norm	Every person or a class defined by the nature of the act or relationship.	Objective moral duty or right; culpability still requires a personal analysis.	Reasoned moral judgment, authoritative moral teaching where applicable, and competent pastoral or theological counsel; no human dispensation from the underlying norm.
Revealed divine norm	Addressees depend on the proposition: all persons, a covenantal people, the baptized, an officeholder, or persons in a sacramental relation.	Moral, doctrinal, sacramental, or constitutional consequence as the source establishes.	The claimed revelation, authoritative teaching, and competent ecclesiastical application must be identified.
Ecclesiastical positive norm	Persons defined by baptism or reception, Church <i>sui iuris</i> , territory, personal status, office, institute, or a singular act.	External or internal canonical duty, validity, liceity, status, penalty, presumption, or remedy.	Legislator, executive authority, tribunal, or law-governed internal forum; exception, privilege, dispensation, recourse, or appeal only as law provides.

Norm and exact source	Claimed subjects and scope	Claimed effect	Authority, forum, and relief
Civil positive norm	Persons, conduct, territory, property, entity, or legal relation within the civil authority's jurisdiction.	Civil validity, prohibition, permission, liability, penalty, status, evidence, or remedy.	Competent agency or court under the applicable constitution, statutes, regulations, conflicts rules, and procedure.
Assumed or role-based norm	A person bound by contract, vow, office, delegation, professional rule, fiduciary relation, or family responsibility.	The specific performance, loyalty, care, confidentiality, reporting, or other duty established by the relation.	The instrument, governing law, competent superior or counterparty, and any procedure for release, modification, or adjudication.

5.3 Apply the binding-force and manifestation gates

For each positive norm, verify:

1. the authority's competence over the person, subject matter, territory, and juridical form;
2. the norm's rank and relation to higher, special, particular, proper, and later law within the same order;
3. the authoritative text, promulgation and effective date for a general law, or legitimate notification and execution for a singular act;
4. the personal, territorial, temporal, and factual conditions that bring the norm into operation;
5. the current interpretation, including any authentic interpretation or controlling judgment;
6. any exception, privilege, acquired right, dispensation, excuse, necessity rule, or doubt of law or fact;
7. the effect of ignorance or error under the rule governing that particular consequence; and
8. whether a treaty, concordat, reception rule, contract, or recognition rule connects the norm to another legal order.

Latin canon law illustrates the distinctions. CIC cc. 7–22 govern promulgation, subjects, territorial scope, doubt, ignorance, interpretation, later law, and reception of civil law. A singular precept under c. 49 directly enjoins a determined person, while a singular decree ordinarily has effect through legitimate notification under cc. 52–56. Dispensation concerns a merely ecclesiastical law and requires competent authority and a just cause (cc. 85–93). The CCEO supplies its own corresponding rules in cc. 1488–1504 and 1510–1539. An apparent permission in one order removes only the obstacle addressed by that order; it does not establish the act's morality or erase a duty in another order.

5.4 Keep an effects ledger

The same facts can produce different answers in different columns:

Question	Required conclusion	Frequent error
Moral object and obligation	What act is this person proposing to choose, and is it required, permitted, or forbidden under the applicable natural and revealed norms?	Treating civil or canonical permission as moral approval.
Validity and status	Did a juridical or sacramental act produce the effect claimed in the relevant order?	Treating reduced culpability or a good intention as curing invalidity.

Question	Required conclusion	Frequent error
External obligation and enforceability	Does a civil, canonical, contractual, or administrative norm bind externally, and in which forum can it be enforced?	Assuming moral non-obligation automatically removes every external effect.
Licety and discipline	If the act was valid, was it also licit, and what disciplinary consequence follows from any illicit conduct?	Treating validity, licety, permission, and impunity as synonyms.
Culpability and sanction	What knowledge, freedom, intent, negligence, excuse, presumption, or defense governs moral fault and each penal order?	Importing a moral conclusion into penal liability, or importing a penal excuse into objective morality.
Evidence and remedy	What must be proved, by whom, before which authority, by what deadline, and with what relief or suspensive effect?	Treating a correct substantive claim as self-executing.

Under CIC c. 1321, the accused is presumed innocent until the contrary is proved, and punishment requires an externally committed violation gravely imputable by malice or culpability. Once the external violation has been committed, imputability is presumed unless otherwise apparent. Canons 1322–1325 govern excuses and mitigation. CCEO c. 1414 uses a distinct scheme: an external violation of a penal law or precept is presumed deliberate unless the contrary is proved, while violation of another law or precept is punished only upon repetition after a penal warning. Canons 1415–1416 govern further excuses and mitigation. Moral cooperation, canonical participation in a delict, and civil accomplice liability are different analyses even when they concern the same conduct.

5.5 Conscience and the several forums

Conscience is the reasoned judgment that this concrete act should be done or avoided (CCC 1777–1793). A person must form conscience and follow a judgment held without practical doubt. Subjective certainty does not establish the truth of every premise, supply a legal dispensation, or decide external rights. Culpable and nonculpable error can affect personal responsibility differently while leaving objective harm, invalidity, civil consequences, or duties of repair in place.

The canonical internal forum is also not another name for conscience or private advice. CIC c. 130 provides that power of governance is ordinarily exercised for the external forum and sometimes for the internal forum, with external effects recognized only as law provides. CCEO c. 980 distinguishes external from sacramental and nonsacramental internal fora in similar terms. A confessor or adviser ordinarily cannot alter external canonical status without a specific faculty and a legal rule giving the act that effect. The civil forum remains separate.

5.6 Resolve apparent conflicts before accepting a true conflict

Concurrent duties often can be harmonized, sequenced, delegated, or accommodated. Within one legal order, interpretation should first consider text, context, purpose, higher rank, special law, later law, and the governing conflict rules. Across civil and ecclesiastical orders, neither forum is universally superior to the other as a human institution; each determines effects within its competence, subject to the common moral measure.

If the duties remain incompatible:

1. A person may never choose an intrinsically evil act or formally cooperate in evil. When a well-formed and certain judgment of conscience concludes that a command requires such an act, refusal is morally required. Civil or canonical consequences must still be anticipated and addressed.
2. Other participation in another's wrongdoing requires analysis of the person's own act and intention, causal proximity, alternatives, duress, proportionate reason, scandal, and effects on vulnerable third parties. *Evangelium vitae* 73–74 applies these distinctions specifically to laws attacking human life; its conclusions cannot simply be transferred to every dispute.

3. When two morally permissible affirmative duties cannot both be performed, practical reason must weigh their gravity and immediacy, the rights and vulnerability of others, nondelegable role obligations, prior commitments, available substitutes, and the common good. No taxonomic label decides that prudential judgment by itself.
4. Even under an abusive command, residual duties remain: protect persons, avoid needless disorder, provide notice where required, preserve continuity of essential care, repair attributable harm, and render whatever the objective common good still requires (CCC 2238–2242).

5.7 Use the competent forum and record the decision

Identify who can give the needed relief: a legislator or authentic interpreter, a competent executive superior or dispenser, a canonical internal or external forum, a tribunal, a civil agency or court, or the relevant contracting authority. Pastoral and legal counsel can assist without possessing adjudicative power. Verify deadlines, exhaustion requirements, available advocates, and whether filing suspends the act. Under the general Latin administrative-recourse sequence, for example, CIC cc. 1734 and 1737 ordinarily provide short periods measured in useful days, and c. 1736 shows that suspension is not generally automatic; CCEO cc. 999–1001 contain an Eastern sequence. Special law can supply different periods and effects.

For a consequential decision, retain a concise account of the controlling text and facts, statuses and roles, norms in each order, interpretation and relief sought, moral judgment, action chosen, persons affected, safeguards, unresolved uncertainty, and the event that should trigger review. This record is not a private decree. It makes the person's reasoning accountable to truth, authority, and the rights of others.

6 Greek Sources: Nature, Convention, and Rational Judgment

These sources do not contain the later Catholic taxonomy. They address antecedent questions: whether civic command is the final measure of justice; whether nature names rational order, biological regularity, or superior power; whether unwritten norms can judge local enactments; and how general rules should govern exceptional cases. Their vocabulary and genres must be read before their later reception.

6.1 *Antigone*: civic decree and a claimed higher duty

In Sophocles' *Antigone* 450–460, Antigone denies that Creon's proclamation can override ordinances that she attributes to the gods as unwritten and enduring (Greek and English witness). The scene dramatizes a conflict between civic office and a claimed higher obligation. It is character speech in a tragedy concerned with piety, kinship, rule, excess, and judgment, not a systematic theory of natural law.

The passage nevertheless attests that Greek drama could distinguish a civic decree from the justice of obeying it. Aristotle later cites Antigone's speech in his discussion of common law according to nature. The reception is explicit; the meaning Aristotle assigns to the example belongs to his own argument.

6.2 Nature and convention require an account of justice

The contrast between *physis* and *nomos* did not carry one moral conclusion. In Plato's *Gorgias* 482e–484c, Callicles appeals to nature to defend domination by the stronger (text). He is an interlocutor whose position Socrates contests. The passage shows why an appeal to nature requires an account of what nature means and why it is normative.

Plato's *Laws* begins by asking whether a constitution is attributed to a god or a human lawgiver (I, 624a–625a). Book X presents a materialist and conventionalist explanation of gods and justice before answering it through the priority of soul and intellect (888e–890a, 890d–892c, 896a–899d; Book X). The dialogue distinguishes divine attribution, rational cosmic order, and civic enactment. Its theology remains Greek philosophical and civic theology; any relation to Christian accounts must be demonstrated by later sources.

6.3 Aristotle: natural justice, determination, and equity

Aristotle gives the most explicit natural/legal distinction in this Greek corpus. In *Nicomachean Ethics* V.7, 1134b18–1135a5, political justice is partly natural and partly legal. Legal justice includes matters that could initially be settled in more than one way but cease to be indifferent once authoritatively determined (Book V). Positive determination is therefore a constitutive part of political justice, not merely a departure from nature.

Aristotle also says that what is natural in political justice can vary in human affairs. At minimum, the text requires readers to distinguish the natural basis of justice from changing material circumstances and applications. It should not be assimilated without argument to a later scholastic account of immutable first principles.

Rhetoric I.13 distinguishes a city’s particular written or unwritten law from a common law according to nature and cites Antigone. The adjacent account of equity addresses cases in which legislation must speak generally but its wording does not fit an unforeseen case (Book I, 1373b–1374b). Equity seeks the reason of the rule; it is not a private power to suspend any inconvenient law.

In *Politics* III.16, Aristotle contrasts rule by law with rule by appetite while recognizing that magistrates must decide what a general text cannot settle (1287a18–32). Together, these passages preserve both governance by general law and prudent judgment in cases the text does not resolve.

6.4 Stoicism: nature, reason, and common law

Diogenes Laertius reports that the Stoic life according to nature conforms to a common law identified with right reason pervading all things and associated with Zeus’s governance (VII.87–89; text). Cleanthes’ *Hymn to Zeus* expresses poetically a cosmos ordered through *logos* and common law. A fragment of Chrysippus survives in Marcian’s excerpt at Digest 1.3.2, where law is called ruler of divine and human affairs and a standard of justice (Digest Book 1).

The evidence is fragmentary and mediated. Later Christian writers use related language, but direct reception must be shown source by source. Stoic immanent rational order is not identical with creation by a transcendent God, and conformity to nature is not the revealed New Law of grace.

6.5 Result of the Greek survey

Question preserved	Contribution of this corpus	Historical limit
Higher obligation	A civic command can be assessed under a claimed divine or common norm.	A dramatic claim or philosophical argument does not itself create a legal remedy.
Nature and convention	Nature can be invoked for rational order or for domination; the meaning and inference must be argued.	The terms do not carry a single theory across authors and genres.
Natural and legal justice	Political justice includes both nonconventional reasons and authoritative determinations.	Aristotle’s account is not Aquinas’s completed law taxonomy.
Equity and judgment	General rules require reasoned application where their wording does not fit the case.	Equity remains answerable to the rule’s purpose and competent judgment.
Common rational law	Stoic sources connect nature, reason, divinity, and norm in a cosmopolitan framework.	Fragmentary transmission and different metaphysics limit claims of direct continuity.

7 Roman Philosophy and Jurisprudence: Sources, Status, and Remedy

The surviving Roman evidence has two distinct kinds. Cicero offers philosophical arguments about reason, nature, and enactment. Jurists identify operative sources, statuses, institutions, actions, and remedies within Roman law. Justinian's sixth-century compilations preserve excerpts from jurists of different centuries alongside philosophical material. Editorial proximity in the compilation does not establish conceptual agreement.

7.1 Cicero: enactment subject to rational judgment

In *De legibus* I.17–19, Cicero defines law as the highest reason implanted in nature, commanding what should be done and prohibiting the contrary. He connects right reason, justice, and a community of gods and humans at I.22–23 and 33, and argues that popular enactment cannot make robbery, adultery, or falsification just at I.42–44 (Latin Book I). Book II.8–11 places law in divine mind and rational order before cities and written commands (Latin Book II).

De re publica III.33 describes true law as right reason consonant with nature, common across peoples and times, and not repealable by senate or people (fragment). The passage survives through Lactantius, *Divine Institutes* VI.8.6–9, and editions number it differently. It later supplied Christian writers with useful Latin vocabulary; the reception and any transformation must be examined in those later texts.

Cicero's standard can criticize enactment without implying that every Roman official possessed a general jurisdiction to invalidate statutes on that ground. Philosophical moral authority, positive legal validity, and institutional remedy are separate questions.

7.2 Gaius: operative sources and differentiated persons

Gaius opens his *Institutes* by distinguishing the *ius civile* peculiar to a people from the *ius gentium* which natural reason establishes among peoples. He then enumerates recognized Roman sources: statutes, plebiscites, senatorial decrees, imperial constitutions, magistrates' edicts, and juristic opinions (1.1–7; Latin text). Law is identified through source and institutional form as well as through philosophical justification.

The work's organization around persons, things, and actions also shows how status, legal capacity, and procedural remedy structured the consequences available to a person. Freedom or slavery, citizenship, family position, ownership, contract, and procedural action affected those consequences. The Roman categories are historically specific, but their method remains important: a general claim about justice does not state who can sue, what proof is required, or which official can grant relief.

Gaius's *ius gentium* is neither modern public international law nor simply Thomistic natural law. It can designate institutions common among peoples because natural reason produced or recognized them. Common acceptance did not guarantee conformity to deeper natural equality, as the law of slavery demonstrates.

7.3 The Digest: juristic plurality

Digest 1.1 gathers several juristic definitions: Celsus on *ius* as an art of the good and equitable; Ulpian on natural, gentium, and civil law; Papinian on praetorian law; and a description of jurisprudence as knowledge of divine and human things (Digest Book 1). These are excerpts from different authors and contexts.

Ulpian calls natural law what nature teaches all animals and reserves *ius gentium* for what human peoples share. That usage differs from the Catholic account of natural moral law as rational participation. Roman civil law could add to or subtract from common law; praetorian law could aid, supplement, or correct the civil law for public utility. The categories described a working relation among sources, officials, and remedies.

Digest 1.3 addresses enacted law: it commands, forbids, permits, punishes, and speaks in general terms. Marcian's excerpt from Chrysippus places a Stoic definition within this juristic anthology. Digest 1.8, by contrast, uses divine and human law to classify property; it does not classify norms by divine or human authorship. Vocabulary must be interpreted by the legal task it performs.

7.4 Justinian's compilation and transmission

Justinian's *Institutes* 1.1–1.3 give pedagogical form to natural, gentium, and civil law; written and unwritten law; and the recognized sources of enactment (Latin text based on Krueger; Moyle translation aid). The statement that natural norms established by divine providence remain firm while civic enactments change is significant, but it does not identify those norms with revealed divine positive law.

The compilation juxtaposes Gaius's civil/gentium scheme and Ulpian's natural/gentium/civil scheme without producing a perfectly consistent taxonomy. It nevertheless preserved texts, classifications, procedural principles, and institutions that medieval civilians and canonists later studied and reorganized. The recovery and teaching of these materials in the medieval schools became one cause of the Western *ius commune*.

7.5 Slavery as a test of legal classification

Roman sources can call slavery an institution of the *ius gentium* contrary to nature and affirm natural human equality, while the civil order continued to treat enslaved persons as property and to deny them full civil personality (*Institutes* 1.2.2, 1.3.2; *Digest* 1.5.4.1, 50.17.32). *Digest* 44.7.14 recognizes natural obligations of enslaved persons even where the civil order withheld an action (*Book* 44).

These texts show that language of nature and natural equality did not by itself invalidate contrary positive institutions. It could criticize, classify, or qualify them while those institutions remained legally operative. The gap between moral measure and available remedy is therefore not a modern discovery. It also shows why a study of law must ask about the person who bears the institution's consequences, not only about the elegance of its categories.

7.6 The Roman contribution

Body of evidence	Primary concern	Later reception	Limit
Ciceronian philosophy	Right reason, nature, divine mind, and the justice of enactment.	A Latin standard for moral criticism of positive law.	It did not itself create a general Roman invalidity remedy.
Classical jurisprudence	Civil, gentium, natural, and praetorian law; interpretation and action.	Relations among common reason, local sources, status, and remedy.	Jurists and their taxonomies remain heterogeneous.
Recognized legal sources	Enactments, edicts, juristic opinions, custom, and imperial constitutions.	Attention to competence, form, and ascertainable positive law.	Source-validity does not establish moral justice.
Justinianic compilation	Systematized instruction and an authoritative corpus of excerpts.	Texts later studied by civilians and canonists.	Compilation did not remove conceptual tensions among the excerpts.
Concrete institutions	Status, family, property, contract, procedure, and slavery.	Examples of how classifications affected obligation and remedy.	Natural criticism could coexist with grave positive injustice.

8 Scripture, the Fathers, and the Formation of Ecclesial Order

For Christian theology, Scripture establishes creation by a personal God, covenantal command, sin and grace, fulfillment of the Law in Christ, the New Law of the Spirit, ecclesial authority, and a supernatural end beyond temporal peace. These claims transform the questions inherited from Greek philosophy and Roman law. The result is neither a biblical code for every polity nor a merely philosophical account with Christian terminology.

8.1 Creation, moral knowledge, and revealed law

Romans 2:14–16 describes Gentiles who do not possess the Mosaic Law yet do by nature what the Law requires, with conscience bearing witness (Romans 2). The passage has become a principal text in Catholic natural-law reflection. Its precise rhetorical subjects remain disputed. For this study’s limited purpose, it supports the claim that moral accountability is not confined to those who possess Israel’s written Torah.

Creation, the image of God, wisdom literature, and prophetic appeals to justice also support an intelligible moral order. Biblical and philosophical uses of nature nevertheless require their own exegesis. Creation remains good and providential; human reason and desire are wounded by sin; and human persons are ordered to communion with God.

Covenantal commands furnish a central case of norms known through divine historical revelation. The Decalogue also states central natural-law precepts. A prohibition can therefore be naturally grounded and positively revealed without the two modes becoming identical. Revelation confirms, specifies, and places the precept within covenant and worship.

Jeremiah promises a covenant in which the law is written upon the heart (Jeremiah 31:31–34). Jesus speaks of fulfilling the Law (Matthew 5:17–48), concentrates it in love of God and neighbor (Matthew 22:34–40), and gives a new commandment shaped by his self-gift (John 13:34–35). In Aquinas’s synthesis, the New Law is principally the grace of the Holy Spirit and secondarily written teaching. The earlier covenant’s moral, ceremonial, and judicial precepts therefore require a salvation-historical account of fulfillment; their former juridical form did not cease through human repeal of divine law.

8.2 Acts 15: a first obligation account

Acts 15 places a concrete person before several claimed norms. Gentile converts enter a community formed by Israel’s Scriptures and Christ’s saving work. Some believers argue that circumcision and observance of the Mosaic law are necessary. Apostles and elders deliberate, hear testimony, interpret God’s action and Scripture, distinguish what should be imposed, and send a written determination to affected communities (Acts 15).

The decision combines theological judgment, apostolic competence, a moral minimum, disciplinary provisions directed to communion, and pastoral reception. The Pontifical Biblical Commission reads the event as distinguishing enduring moral requirements from temporary compromise while relating communal discernment to personal conscience (*Bible and Morality* 151–153). The passage does not supply the later law taxonomy, but it displays its practical problem: the source and scope of a claimed divine norm, competent ecclesial judgment, the status of the persons addressed, community unity, and the action now required.

8.3 Civil authority and its moral limit

Romans 13:1–7 and 1 Peter 2:13–17 direct Christians to obey governing authority in its service of order and good (Romans 13; 1 Peter 2). Acts 5:29 places that obedience under the prior claim of God when authority forbids apostolic witness (Acts 5). Read together, the texts affirm real political authority and a moral limit to its commands.

Jesus’ instruction concerning Caesar and God (Matt 22:15–22) distinguishes claims without assigning every mixed matter to a forum. Early martyr accounts and apologies show Christians praying for rulers and refusing acts of idolatrous worship. Tertullian’s *Apology* 33–34, for example, honors the emperor as emperor while denying him divine status (text). The duty of civil loyalty and the duty of religious refusal fell upon the same person.

8.4 Ecclesial norms before imperial recognition

The New Testament depicts binding and loosing, apostolic judgment, appointment of ministers, community discipline, adjudication, and conciliar decision (Matt 16 and 18; Acts 15; 1 Cor 5–6; the Pastoral Epistles). These sources ground the Church’s capacity to establish binding internal norms and adjudicate disputes before imperial recognition. The 1983 CIC’s promulgating constitution later places canonical discipline within that ecclesiological history (*Sacrae disciplinae leges*).

The *Didache* joins catechesis, the two ways of life and death, worship, appointment, and community discipline (text). During the first centuries, local and regional councils, episcopal letters, liturgical practice, and penitential discipline

generated bodies of ecclesial norms with different territorial scope and later reception. An exhortation, a local canon, and a generally received rule therefore require separate identification.

8.5 Augustine: eternal measure, temporal peace, and coercion

In *De libero arbitrio* I.5–6, Augustine makes eternal law the measure of temporal justice and explains why temporal law does not punish every disordered desire. *City of God* XIX.17 presents the pilgrim city as obeying diverse laws that maintain earthly peace insofar as they do not impede worship of God (Book XIX.17). His two cities are communities defined by their loves, not institutional synonyms for Church and state.

Augustine’s judgment about coercion changed during the Donatist controversy. Letter 93.16–17 says that he had opposed coercion into unity but revised his position after observing imperial pressure. Letter 185.23–26 defends fines and exile as corrective while rejecting capital punishment in that setting and acknowledging that goodness cannot be produced without the will. The development records a genuine tension among truth, baptismal obligation, public order, persuasion, and coercive means. It later became part of the history against which Catholic teaching on religious freedom developed.

8.6 Christian empire and diverging canonical trajectories

Imperial toleration and patronage altered the institutional setting. Councils issued canons; bishops governed communities and sometimes adjudicated civil disputes; emperors convoked councils, enacted laws affecting ecclesiastical institutions, enforced settlements, and sometimes attempted to control doctrine. Marriage, property, clerical status, asylum, worship, and public order could acquire both ecclesiastical and civil consequences. The same persons and acts thus entered distinct but interacting forums.

In the East, conciliar canons, imperial legislation, and later nomocanonical collections placed ecclesiastical and civil texts in coordinated corpora. Justinian’s Novel 6 (535) distinguishes priesthood, which serves divine matters, from imperial authority, which administers human affairs, while the enactment itself regulates episcopal qualifications and Church discipline (older English witness). The text illustrates cooperation and overlap rather than a modern allocation of wholly separate systems.

The Council in Trullo (691–692) received a defined corpus of earlier canons and added extensive discipline; its reception differed between East and West. Later Eastern commentators and collections developed within those sources. The promulgating constitution of the CCEO expressly locates the current Eastern code within this first-millennium conciliar inheritance and the distinct patrimonies of the Eastern Churches (*Sacri canones*). The CCEO is therefore the result of a different canonical history, not an Eastern translation of Latin law.

In the Latin West, conciliar canons, papal decretals, patristic authorities, penitential books, Roman legal materials, and local collections circulated without one comprehensive code. Reform disputes, the recovery of Justinianic texts, and the growth of schools and papal adjudication eventually created the setting in which Gratian and the decretists worked. The history proceeds from a plurality of sources and forums to juristic efforts at concord, not from an original complete taxonomy to later application.

9 Canonistic Formation, Scholastic Synthesis, and Early Modern Expansion

9.1 Why systematic canon law emerged

Before Gratian, the Latin Church possessed Scripture, patristic authorities, conciliar canons, papal decretals, penitential norms, liturgical sources, and regional collections. Their dates, addressees, purposes, and formulations differed. Eleventh- and twelfth-century reform disputes over simony, clerical life, episcopal appointment, papal authority, and lay control increased the need to identify and reconcile governing sources. At the same time, renewed study of Justinianic Roman law and the growth of schools supplied juristic methods.

This conjunction matters. Systematic canon law did not arise only from an abstract interest in classification. Expanding ecclesiastical jurisdiction, reform, litigation, legislation, and teaching created practical questions about which authority and text controlled. The recovery of Roman law contributed vocabulary and procedure; ecclesial sources supplied a distinct constitution and end. Anders Winroth’s account connects reform, papal government, the schools, and increasingly systematic collections while preserving the contested chronology of Gratian’s work (historical control).

9.2 Gratian: discordant authorities and juristic concord

The *Decretum* begins by saying that humankind is ruled by natural law and customs. Gratian identifies natural law with what is contained in the Law and Gospel, including the command to treat another as one wishes to be treated; his broad category of custom includes written and unwritten human law (D.1 dictum before c.1; Friedberg edition text). D.1 c.1, drawn from Isidore’s *Etymologies* V.2, then divides laws into divine, grounded in nature, and human, grounded in custom (D.1 c.1).

The opening contains real tension. Gratian’s initial identification is scriptural; D.1 cc.6–9 also transmit Isidore’s Roman-derived natural, civil, and gentium categories (D.1 c.6; c.7; c.8; c.9). Gratian’s distinctions, hypothetical cases, dicta, and reconciliation techniques offered later decretists a method for determining whether authorities addressed different times, places, meanings, or exceptions.

D.4 c.2 receives criteria for human enactment: it should be honorable, just, possible, fitting to nature and local custom, adapted to time and place, necessary, useful, clear, and directed to common utility (text). Juridical form and substantive justice are both part of the inquiry.

9.3 Decretists, decretals, courts, and the *ius commune*

Rufinus’s *Summa Decretorum* distinguishes a natural capacity implanted in rational humans from the Roman animal-wide use of *ius naturale*. He relates institutions understood to arise after the Fall, the *ius gentium*, the Decalogue and Gospel, and positive canons governing ecclesial institutions (ed. Heinrich Singer, 1902, pp. 4–10; scan). His work exemplifies decretist efforts to interpret, rather than merely repeat, Gratian’s authorities.

Papal decretals issued in cases and as legislation continued to accumulate. Gregory IX’s *Liber Extra*, compiled by Raymond of Peñafort and promulgated in 1234, reorganized this material into five books for teaching and practice (edition and source guide). Decretalists interpreted the new collection; later official and private collections joined Gratian and the *Liber Extra* in what became the *Corpus iuris canonici*.

The medieval *ius commune* was not one statute book. The learned *ius commune* comprised Roman and canon law and their juristic literature; courts applied it in interaction with local, feudal, municipal, corporate, royal, and customary *iura propria*. Ecclesiastical and civil courts could apply overlapping bodies of doctrine to marriage, oath, property, status, contract, benefice, crime, and procedure. A litigant’s forum, status, cause of action, proof, and remedy affected the outcome. Modern language of legal pluralism helps describe that multiplicity, provided it does not project fully separate modern legal systems backward onto every source and institution.

Romano-canonical procedure developed structured pleading, proof, representation, appeal, and record. These forms did more than administer substantive norms: they determined what could be established and remedied in the external forum. Claims of right or natural justice could receive enforceable effect when recognized through actions, exceptions, presumptions, and competent judgment.

9.4 Penitential and contentious forums

Medieval Christians also encountered norms through penance and confession. Canonists and pastoral writers distinguished forms of judgment concerned with conscience, sacramental discipline, public status, and contentious litigation. The vocabulary and institutional boundary developed over time. Joseph Goering traces a two-fora account in the decades after Gratian while warning that later language of the *forum internum* should not be projected indiscriminately into earlier texts (study). Wolfgang P. Müller’s contrary historiographical challenge shows that the emergence and later reconstruction of the category remain disputed (study).

The historical distinction matters for personal obligation. A judgment about sin, an ecclesiastical penalty, a sacramental remedy, and a civil cause of action could concern related conduct without producing identical effects. Current canon law’s internal and external forums have positive definitions and cannot simply be read back into medieval practice.

9.5 Aquinas’s architecture

Aquinas relates law to beatitude, virtue, grace, prudence, community, and salvation in *Summa theologiae* I–II qq. 90–108:

Form	Source and character	Mode of knowledge	Function
Eternal law	Divine wisdom governing the created order.	Known perfectly by God; creatures participate according to their mode.	Ultimate source and measure of just order.
Natural law	Rational participation in eternal law.	Practical reason grasps first principles and reasons toward conclusions.	Directs action toward human goods and supplies human law’s moral basis.
Human law	Particular conclusions and determinations for a political community.	Known through promulgated enactment or legally operative custom and interpreted by reason and authority.	Coordinates action, restrains grave wrongdoing, secures justice, and supports virtue.
Divine law	The revealed Old and New Law; the New Law is principally grace.	Received through revelation and faith.	Directs persons to their supernatural end and reaches acts beyond human law’s competence.

The principal loci are q. 90, q. 91, q. 93, q. 94, and q. 95; Old and New Law receive extended treatment in qq. 98–108.

Aquinas also treats the stability and change of human law, custom, dispensation, and equity. Change can serve the common good while weakening law’s habituating stability (q. 97, a. 2). Custom can acquire or interpret legal force through the community’s juridically relevant action (q. 97, a. 3). Dispensation belongs to authority entrusted with the community and applies a common rule where its reason fails in the case (q. 97, a. 4). Equity addresses exceptional application of general wording according to the rule’s rational purpose (II–II q. 120). Current positive law defines which authorities and procedures can give those concerns external legal effect.

9.6 Salamanca, conquest, and the law of peoples

European expansion forced scholastic and juridical categories into disputes about the status, property, political authority, religious freedom, and resistance of non-Christian peoples. In *De Indis*, Francisco de Vitoria tests asserted Spanish titles to dominion against natural law and the *ius gentium* and recognizes the political and proprietary *dominium* of Indigenous peoples (“On the American Indians,” q. 1, conclusion, pp. 239–251 in the Pagden–Lawrance edition). His arguments also retained contested titles and assumptions connected to communication, mission, and war; they should not be presented as a completed anticolonial settlement.

The Valladolid controversy of 1550–1551 placed Juan Ginés de Sepúlveda’s arguments about conquest and hierarchy against Bartolomé de las Casas’s defense of Indigenous rationality, freedom, and evangelization without coercive war. The sources disclose a live conflict over jurisdiction, cultural difference, natural rights, religious mission, and imperial power rather than a linear triumph of natural law (documentary and historiographical guide). The episode demonstrates both the critical capacity of higher-law reasoning and its vulnerability to disputed anthropology and imperial interests.

9.7 Trent, Suárez, and the early modern bridge

The Council of Trent supplies concrete examples of ecclesiastical competence and positive determination. Session VII, canon 8 on baptism rejects freedom from all Church precepts. Session XXIV, canon 4 on matrimony affirms ecclesiastical competence to establish diriment impediments; *Tametsi* then enacts a form requirement where promulgated (Session

VII; Session XXIV witnesses). The doctrinal claim about competence and the changeable disciplinary rule remain distinct.

Francisco Suárez's *De legibus ac Deo legislatore* (1612) examines law and lawgiver, obligation and promulgation, eternal and natural law, human civil and canonical law, *ius gentium*, custom, privilege, and revealed law (especially I.5–12; II; III–IV; VII–X). He locates the legislator's will within rational direction of a community toward the common good. His account is an early modern scholastic synthesis with its own terminology; it should not be reduced either to Thomistic repetition or to later command theory.

Reformation, confessional division, overseas empire, stronger territorial government, and disputes over sovereignty changed the institutions within which these categories operated. Natural law and *ius gentium* became languages used across confessional boundaries, while civil and ecclesiastical jurisdictions were increasingly reorganized by states. The next section follows that transformation into toleration, codification, legal positivism, rights, and Vatican II.

10 Ecclesiastical and Civil Order in the Modern Transformation

The history cannot be reduced to a steady advance toward “separation.” That word may refer to distinct offices, independent institutions, disestablishment, religious liberty, noninterference, cooperation, exclusion of religion from public life, or the moral self-sufficiency of the state. These meanings arose in different settings and receive different Catholic judgments.

10.1 Gelasius and a differentiated Christian order

Pope Gelasius I wrote *Famulae pietatis* to Emperor Anastasius in 494 during the Acacian schism. His paired authorities were the sacred authority of bishops and royal power. Clerics obey imperial law in temporal public order; the emperor receives the sacraments and religious teaching from ecclesiastical ministers, who will answer before God even for rulers. Gratian later received the letter at D.96 c.10 (*Duo sunt*). A related Gelasian text attributes the distinction of offices to Christ, so that neither office usurps the function of the other (D.96 c.6; text).

This was neither a theory of equal modern sovereignties nor a program for private religion. It distinguished offices inside a Christian moral order and assigned an asymmetry according to subject matter. Later conflicts over appointment, courts, taxation, property, discipline, and coercion showed that the boundary did not decide itself.

10.2 Medieval plurality and its disruption

Latin Christendom combined papal and episcopal courts, imperial and royal authority, feudal and municipal law, religious institutes, corporations, and local custom. Canonists and civilians developed rules of jurisdiction, proof, representation, status, marriage, benefices, property, and appeal. An individual could stand in several of these relations at once. The Investiture Contest and later conflicts concerned concrete control of office and property as well as theories of the two powers.

This plurality was neither peaceful nor identical to modern federalism. The jurisdictions shared religious premises, borrowed procedures, and made rival claims. Papal plenitude of power in spiritual matters did not turn ordinary civil administration into ecclesiastical action; royal government did not thereby gain power over doctrine or sacraments. The period supplied techniques for allocating a controversy before it supplied one uncontested allocation.

10.3 Reformation, confessionalization, and territorial power

The Reformation fractured and reorganized the already contested institutional unity of Latin Christendom. In the Empire, the Religious Peace of Augsburg (1555) allocated confessional authority and protections among imperial estates, while the Instrumentum Pacis Osnabrugensis (1648), especially art. V, revised the settlement. Neither instrument created a general, equal individual right to religious liberty. Territorial churches, other confessional settlements, religious wars, migration, colonial government, and expanding fiscal and administrative capacity produced different local configurations. Toleration developed unevenly as a settlement of civil peace, a protection for conscience,

a privilege for specified groups, and eventually a claim of equal right. These stages carried different grounds and scopes.

The same transformation affected legal thought. Sovereignty theories concentrated final public authority; national and territorial legislation displaced parts of the learned *ius commune*; and natural law and the *ius gentium* became languages for argument across confessional lines. Overseas conquest also exposed the danger of announcing universal norms while using contested accounts of personhood, civilization, or title to exclude the people most in need of their protection.

10.4 Codification and the positivist question

Eighteenth- and nineteenth-century codification sought accessible, systematic, territorially unified law and reduced reliance on dispersed custom and juristic learning (see Peter Stein, *Roman Law in European History*, chs. 6–7). State administration, legislation, and courts increasingly identified law through institutional sources. The Church’s 1917 Latin code belonged to the codifying age, but its c. 6, no. 6 expressly preserved rules of natural and divine positive law that the code did not reproduce. Codification organized ecclesiastical discipline; it did not claim to author every norm binding the Church.

Legal positivism posed a related analytical question: can legal validity be identified from social sources without deciding moral merit? Austin’s command theory, Kelsen’s normativism, and Hart’s rule of recognition within a union of primary and secondary rules answer that question differently. None should be equated with the proposition that every official command is just. A source-based account can explain why officials treat an enactment as legally valid while leaving open whether it obliges in conscience.

The natural-law criticism begins when institutional pedigree is made a sufficient account of moral authority. Conversely, a natural-law judgment of injustice does not by itself establish that a court lacks jurisdiction or that an enactment has no positive effects. Radbruch’s postwar analysis of extreme statutory injustice and Fuller’s account of legality’s internal demands show that the debate also concerns the limits of juridical form, not merely rival moral slogans.

10.5 Nineteenth-century Catholic confrontation

Pius IX’s *Quanta cura* and the attached *Syllabus* (1864) oppose state naturalism, religious indifferentism, popular will as a supreme norm independent of divine and human right, and civil law detached from natural and divine sanction (official Latin). The *Syllabus* also rejects propositions favoring Church–state separation (no. 55) and broad public exercise of non-Catholic religion in the circumstances addressed by the source documents (nos. 77–79). Because the numbered propositions refer to prior controversies, the list is not a context-free constitutional code. Its confessional default nevertheless differs from the later juridical center of *Dignitatis humanae*.

Leo XIII’s *Immortale Dei* describes ecclesiastical and civil powers as supreme within defined orders and calls for concord when the same persons and matters relate to both ends (nn. 13–14; text). *Libertas* treats human law as a conclusion or determination of natural law and denies moral authority to commands opposed to right reason (nn. 6–10; text). These texts defend both a proper civil order and the Church’s independence while retaining a confessional political horizon.

The loss of the Papal States in 1870 and the Lateran settlement in 1929 changed the institutional setting. The treaty recognized Holy See sovereignty and created Vatican City State to secure its independence. Treaty and concordat continued to serve as legal means for coordinating distinct orders; the Lateran Pacts supplied a modern settlement without restoring the former territorial domain.

10.6 Total state claims and the postwar rights turn

Twentieth-century totalitarian regimes made the question concrete. *Mit brennender Sorge* rejects racial and political idols and states that enactments contrary to natural law cannot bind conscience (nn. 29–31; text). *Summi Pontificatus* connects denial of a universal moral law and common human origin with state absolutism, attacks on the family, and loss of personal rights (text). These were not general theories of constitutional design; they were judgments against ideologies and laws that subordinated persons to race, nation, or state.

Postwar human-rights instruments and Catholic social teaching moved the juridical subject toward the person bearing reciprocal rights and duties. The Universal Declaration of Human Rights begins from inherent dignity and, in art. 18, states a right to freedom of thought, conscience, and religion; it is a General Assembly declaration, not a treaty, so its juridical operation must not be overstated. John XXIII's *Pacem in terris* sets rights to life, worship, family, work, association, migration, and political participation beside corresponding duties; it locates public authority within the moral order and the common good (nn. 9–38, 46–79; text). The move matters for this study: the person is not merely the object of competing jurisdictions but a responsible subject whose dignity limits each one.

10.7 From toleration to civil immunity

Pius XII's 1953 address *Ci riesce* distinguishes objective moral truth from the prudential duty of public authority to repress every error. A higher common good can require toleration, and positive international rules can specify natural-law obligations (Italian text). The address forms a bridge, although it does not yet formulate Vatican II's civil right.

Dignitatis humanae grounds religious freedom in the dignity and social nature of the person. Within due limits, persons may neither be forced to act against their religious beliefs nor restrained from acting in accordance with them, privately or publicly, alone or in association (nn. 2–4; text). The civil right rests on human nature and therefore remains when a person fails the moral duty to seek and adhere to truth. Number 1 preserves that duty; number 6 permits special civil recognition of a community only with effective protection for the freedom and equality of all; number 12 acknowledges conduct in Christian history contrary to the Gospel's spirit.

The development is juridically substantial. Earlier noncoercion principles coexisted with theories and practices of coercive correction and public restriction. The Council places the civil immunity of persons and communities at the center without teaching that truth is subjective or that disestablishment is the only legitimate constitutional form.

10.8 Autonomy, independence, and cooperation

Gaudium et spes 36 distinguishes the legitimate autonomy of temporal realities from autonomy understood as independence from the Creator. Sections 74 and 76 locate civil authority within the moral order and describe the political community and the Church as autonomous and independent in their own fields, serving the personal and social vocation of the same persons under different titles and cooperating for the common good (text). The Council also distinguishes acts performed by Christians as citizens from acts performed in the Church's name.

Question	Present Catholic position	Practical consequence	Limit
Office and jurisdiction	Ecclesiastical and civil authority possess distinct competencies.	Identify the capacity in which an act is issued and the effects each forum can give it.	Related persons and facts can remain subject to both orders.
Institutional freedom	The Church and political community are independent in their proper fields.	Civil law must protect religious communities; ecclesiastical authority must respect temporal competence.	Independence does not exempt institutions from every just general law.
Religious liberty	Persons and communities possess civil immunity within just public order.	The state must supply equal, effective legal protection.	Immunity neither settles religious truth nor permits injury to others' rights.
Moral measure	Every human positive order remains answerable to objective justice.	Enactment and enforcement require moral as well as source-based assessment.	Moral defect and positive invalidity are separate conclusions.
Cooperation	Agreements and coordinated action may serve the common good.	Concordats, corporate forms, and parallel processes can allocate responsibility.	Cooperation must preserve competence and freedom from coercion.

The result is differentiated responsibility rather than isolated sovereignties. Civil authority does not determine doctrine or administer sacraments; ecclesiastical authority does not possess governing competence over every prudential

determination of temporal policy. Both can affect one person, and neither can eliminate the person's prior obligations to truth, justice, and the rights of others.

11 Contemporary Catholic Synthesis

11.1 An ordered plurality of law

The *Catechism of the Catholic Church* 1950–1986 coordinates eternal law, natural moral law, the revealed Old and New Law, and civil and ecclesiastical law (CCC 1950–1986). The categories are related but perform different work. Eternal law names divine wisdom as the ultimate order; natural law names rational participation in that order; the Old and New Law name revealed economies; human laws give determinate juridical form to common life.

Natural law is universal and stable in its first principles, yet knowledge and application can be impaired by error, passion, social conditions, and sin (CCC 1954–1960). Revelation supplies light and grace; it does not make human nature unintelligible to reason. Civil and ecclesiastical legislation remains necessary because moral principles alone do not select every office, procedure, calendar, remedy, or institutional arrangement.

11.2 One person bearing reciprocal rights and duties

Pacem in terris 28–34 treats natural rights and duties as correlative. A person's right entails duties in others to recognize and respect it; the right-holder also bears duties to exercise freedom responsibly and to contribute to the common good. Public authority must coordinate and protect these relations rather than treat the person only as the object of administration (text).

This reciprocity prevents an individual obligation account from becoming individualistic. Status, office, family, property, contract, and citizenship create relationships in which another person can hold a corresponding claim. A remedy protects a right; it can also specify who owes performance, what proof is required, and how competing claims are ordered.

11.3 Freedom, embodiment, and the moral object

John Paul II's *Veritatis splendor* 35–53 rejects accounts that separate freedom from truth or reason from embodied human nature. Natural law is rational participation by the human person, not a biological regularity imposed without reason (text). Universality and concrete judgment therefore belong together.

The encyclical's treatment of the moral object, intention, and circumstances at nn. 71–83 also limits legal analysis. A good institutional aim cannot make an intrinsically wrongful chosen act good. At the same time, a general moral norm does not settle every question of attribution, cooperation, evidence, remedy, or positive validity. Those questions require their own facts and competent methods.

11.4 Public moral reasoning

The International Theological Commission's 2009 *In Search of a Universal Ethic* surveys wisdom traditions, Greco-Roman thought, Scripture, Christian development, moral experience, first principles, historicity, political society, and Christological fulfillment (text). It is an expert commission study rather than an act of the Magisterium. Its methodological contribution is the proposal that natural-law argument should articulate human goods and practical reasons accessible to common inquiry.

Such accessibility does not require citizens to conceal religious convictions. It requires an argument proportioned to the public authority claimed and the rights affected. Dignity, solidarity, subsidiarity, common good, and protection of the vulnerable guide judgment without functioning as a ready-made municipal code. Several positive specifications can be morally reasonable; empirical claims and distributive effects must therefore be tested rather than assumed.

11.5 Teaching, legislation, administration, and judgment

Ecclesiastical functions must be classified before their effects are asserted. The Magisterium teaches faith and morals. Legislators enact general norms. Executive authorities issue general or singular administrative acts within law. Tribunals decide controversies. One papal act can contain more than one function, but document genre, operative words, competence, approval, promulgation, subjects, and effective date remain decisive.

Act	What it can establish	What must still be shown	Typical error
Doctrinal teaching	An authoritative proposal or judgment of a proposition in faith or morals.	The level of authority, proposition taught, and required response.	Treating every sentence as a penal or procedural rule.
Legislation	A general juridical norm for defined subjects.	Competence, promulgation, scope, effective date, and amendments.	Inferring legal force from theological importance alone.
Administrative act	An implementation, decision, command, favor, or dispensation in the assigned sphere.	Legal basis, competence, facts, notification, reasons, and recourse.	Treating a singular act as universal legislation.
Judgment	A binding resolution of a case within jurisdiction.	Parties, issue decided, proof, procedural posture, and avenues of challenge.	Treating the result as binding every person and case.

CIC c. 747 §2 states the Church's competence to announce moral principles concerning the social order and to judge human affairs when fundamental rights or the salvation of souls require it; cc. 749–754 distinguish forms of teaching and response (CIC 747–755). These canons neither reduce moral teaching to legislation nor make every prudential statement a universal command.

11.6 Natural ground and positive recognition

A right can be natural in ground and positive in legal form. The state does not create human dignity, but constitutional and statutory recognition supplies jurisdiction, standing, remedies, procedures, and duties for institutions. Recognition is therefore neither the source of the underlying worth nor a redundant repetition of moral truth.

Dignitatis humanae uses this structure. It grounds religious immunity in the nature and dignity of the person and calls for recognition of the right in constitutional law. Positive recognition can make the right legally cognizable and supply specified protections or remedies, as the domestic order provides. Its regulation must remain directed to the rights of others and just public order; majority discomfort or religious error alone does not satisfy that measure.

11.7 Conscience, error, and external effect

Conscience is practical judgment about the moral quality of a concrete act. It must be formed and followed when certain; culpable and inculpable error require separate moral analysis (CCC 1776–1802; text). Conscience applies moral truth to action. It does not enact civil or canonical law, dispense a legal obligation, determine disputed facts for every forum, or guarantee immunity from external consequences.

A person facing conflict must therefore ask more than whether conscience is invoked. The inquiry identifies the act to be performed, its object and intended end, the person's causal and institutional role, alternatives, duress, effects on third parties, available exemption or review, and the consequences of action or refusal. A canonical internal-forum act is itself a juridically defined ecclesial act; it is not another name for every private judgment of conscience.

11.8 The range of legitimate dispute

Catholic thinkers continue to dispute the best philosophical account of natural law, the relation of basic goods to metaphysics, the status of the *ius gentium*, the criteria of legal validity, and many prudential applications. Different

approaches overlap without becoming interchangeable, and this survey does not adjudicate among them.

Point	Established for this study	Question left open
Objective moral measure	Human enactment does not create every reason for action or every basic right.	Which philosophical account best explains practical reason, basic goods, and metaphysical participation?
Positive specification	Competent authority can choose among morally permissible determinations and give them juridical effects.	Which specification best serves the common good under disputed empirical conditions?
Validity and morality	Source-validity and moral obligation require distinct conclusions.	Which conceptual relation between law and morality best explains radically unjust enactments?
Rights and community	Natural dignity, reciprocal duties, positive recognition, and remedies must be held together.	How should particular rights be specified and balanced in a concrete constitutional order?

The taxonomy identifies the question each field must answer and the evidence appropriate to it. Philosophy and moral theology assess reasons and acts; history reconstructs development; legislation supplies authoritative form; procedure establishes facts and remedies; comparative and social inquiry test assumptions about how institutions operate.

12 Current Canon Law: Sources, Subjects, and Effects

12.1 Two codes and two canonical traditions

The 1983 CIC was promulgated on 25 January 1983 and entered into force on 27 November 1983. Its canons concern the Latin Church alone unless another rule expressly provides otherwise (CIC c. 1; CIC 1–6). The 1990 CCEO was promulgated on 18 October 1990 and entered into force on 1 October 1991. It concerns all and only the Eastern Catholic Churches unless relations with the Latin Church are expressly addressed (CCEO c. 1; *Sacri canones*).

The promulgated official Latin texts control. Holy See English CIC pages and published English CCEO editions assist study. The CCEO expresses an Eastern canonical tradition with its own sources and institutions; it should not be treated as a translation of Latin law. Neither base code is self-updating. Later legislation, authentic interpretations, liturgical law, custom, particular and proper law, agreements, and special norms remain necessary to a current answer.

12.2 The code is one source within a legal order

Source or juridical form	Operation	Illustrative locus	Control
Divine law declared or protected	A canon states, presupposes, or protects a norm the Church receives rather than authors.	CIC cc. 129, 330–331, 1055–1056, 1075, 1141.	Isolate the divine proposition from human definition, procedure, presumption, and remedy.
Universal or common legislation	Competent authority enacts general norms for the whole Church, one Church, or defined subjects.	CIC, CCEO, and papal acts whose juridical content is legislative.	A document label does not settle effect; competence, dispositive text, promulgation, subjects, effective date, and amendment control.

Source or juridical form	Operation	Illustrative locus	Control
Particular, special, or proper law	A competent council, synod, bishop, institute, office, or other authority legislates for defined persons or matters within higher law.	Diocesan, eparchial, synodal, institute, tribunal, and office-specific law.	Latin and Eastern categories do not form one simple ladder; CCEO cc. 1493 and 1502 §2 require their own common/particular-law analysis.
Custom	A legally capable community's practice acquires force under the governing Latin or Eastern rules.	CIC cc. 23–28; CCEO cc. 1506–1509.	CIC c. 25 expressly requires intent to introduce law; the CCEO uses a distinct formulation. Mere frequency is insufficient in either order.
General decree or instruction	Under Latin law, a general decree can be legislative or executory; an instruction clarifies the execution of law.	CIC cc. 29–34; Eastern acts must be classified under the CCEO's distinct structure rather than assigned a one-to-one Latin equivalent.	Legislative effect, executive competence, higher law, and promulgation or other required manifestation control.
Singular administrative act	A decree, precept, rescript, privilege, or dispensation addresses a concrete person or case.	CIC cc. 35–93; CCEO cc. 1510–1539.	Competence, facts, form, notification or execution, interpretation, rights, and recourse control.
Judgment and jurisprudence	A tribunal resolves a controversy; jurisprudence can guide interpretation and some nonpenal gaps.	CIC cc. 16 §3, 19, 1400–1752.	A judgment ordinarily binds the case; CIC c. 19 and CCEO c. 1501 do not authorize penal gap-filling. CIC c. 1399 is an express penal norm, not analogy.
Civil norm or agreement received	Canon law assigns defined canonical effects to civil law or preserves an agreement with a state.	CIC cc. 3, 22, 1290; CCEO cc. 4, 1034, 1504.	The reference, jurisdiction, agreement, and divine- and canon-law limits must be verified.

12.3 The person who is subject to the norm

Baptism incorporates a person into the Church of Christ and constitutes the person in it with duties and rights according to condition, communion, and lawful sanction (CIC c. 96). Age, use of reason, domicile, quasi-domicile, kinship, and Latin or Eastern ascription then affect capacity, proper authority, and applicable law (CIC cc. 97–112; CIC 96–123). CCEO cc. 7 and 27–38 address incorporation and Church *sui iuris* ascription; cc. 909–919 govern physical persons, including domicile, kinship, and affinity; cc. 920–930 govern juridic persons.

CIC cc. 208–223 and CCEO cc. 7–26 state reciprocal rights and duties of the Christian faithful, including equality in dignity and action, communion, obedience, expression of needs and opinion, spiritual goods, reputation, privacy, vindication of rights, and the common good (CIC 208–223). Exercise of a right and obedience to authority remain juridically ordered. The person's condition as cleric, lay member, consecrated person, officeholder, institute member, or addressee of a singular act can add further duties without making that condition universal.

12.4 How a norm becomes operative

General legislation and singular acts use different manifestation rules. Under CIC c. 7 a law is established when promulgated. Unless a different mode is prescribed, universal ecclesiastical laws are promulgated in the *Acta Apostolicae Sedis* and take effect three months from the date of the issue; the nature of the matter can require immediate effect, and the law itself can expressly establish a shorter or longer interval (c. 8 §1). Particular laws follow the legislator's mode and ordinarily take effect one month from promulgation unless the law establishes another period (c. 8 §2). CCEO c. 1489 gives laws of the Apostolic See the three-month default and leaves other Eastern legislators to determine promulgation and commencement. Merely ecclesiastical Latin laws ordinarily bind the persons described in CIC c. 11, while cc. 12–13 determine territorial and personal reach (CIC 7–22).

A singular precept directly enjoins a determined person under c. 49. Singular decrees and precepts ordinarily require the legitimate notification governed by cc. 54–56; rescripts, privileges, and dispensations have their own rules. It is therefore inaccurate to use promulgation as the universal trigger for every canonical obligation.

Doubt, ignorance, and error must also be tied to the effect at issue. CIC c. 14 governs doubt of law and doubt of fact. Under c. 15 §1, ignorance or error concerning an invalidating or disqualifying law does not impede its effect unless the law expressly provides otherwise. Section 2 states that ignorance or error about a law, a penalty, one's own act, or another person's notorious act is not presumed; ignorance or error about another person's non-notorious act is presumed until the contrary is proved. Penal imputability is governed separately by cc. 1321–1325, and moral culpability requires its own account of knowledge and freedom. One conclusion cannot be imported into the others.

12.5 Interpretation, authority, and forum

Authentic interpretation belongs to the legislator or an authority entrusted with that power (CIC c. 16). An interpretation issued in the form of law has the force of law and requires promulgation; a judicial sentence or administrative act in a particular matter ordinarily binds only the persons and matter decided. Canon 17 directs interpretation through text and context, parallel places, purpose, circumstances, and the mind of the legislator. Canon 18 requires strict interpretation of penal, rights-restricting, and exceptional laws. Canon 19 supplies sources for nonpenal gaps.

The CCEO contains related but distinct provisions, including c. 1498 on interpretation and c. 1501 on nonpenal gaps. Its latter canon expressly includes the canons of synods and Fathers, legitimate custom, general principles applied with equity, ecclesiastical jurisprudence, and common and constant canonical doctrine (CCEO 1007–1546).

Canonical forum is not identical to conscience. CIC c. 130 states that power of governance is ordinarily exercised for the external forum and sometimes for the internal forum, with external effects only as law provides. CCEO c. 980 expressly distinguishes the external forum and the sacramental and nonsacramental internal fora. A private moral judgment remains indispensable for action, but it does not itself alter external canonical status.

12.6 Divine-law boundaries in positive form

The codes make the source distinction operational:

- Custom contrary to divine law cannot acquire legal force (CIC c. 24 §1; CCEO c. 1506 §2).
- Civil law receives canonical effects only where canon law yields or refers to it, insofar as the civil norm is not contrary to divine law and canon law does not provide otherwise (CIC c. 22; CCEO c. 1504).
- Dispensation relaxes a merely ecclesiastical law in a particular case (CIC c. 85; CCEO c. 1536). CIC c. 86 excludes laws defining essentials of juridic institutions or acts; CCEO c. 1537 additionally excludes procedural and penal laws from dispensation.
- Prescription does not run against rights and obligations of divine natural or positive law (CIC c. 199, no. 1; CCEO c. 1542).
- Only supreme Church authority authentically declares when divine law prohibits or invalidates marriage and establishes other impediments for the baptized (CIC c. 1075).
- A ratified and consummated sacramental marriage cannot be dissolved by any human power or cause other than death (CIC c. 1141). The rules for establishing the relevant facts and deciding a cause are human canonical law.

The presence of the word *divine* does not eliminate the need to establish the proposition and its authoritative basis. The codes allocate juridical consequences once that source claim has been established; they do not convert every theological inference into an external rule.

12.7 The effects of merely ecclesiastical law

The adjective *merely* identifies a human ecclesiastical source rather than divine law. It therefore removes the absolute divine-law bar to dispensation, but it does not establish that every such norm is dispensable in a particular case or

determine the rule’s importance, moral gravity, validating effect, or sanction. A merely ecclesiastical rule can create a real duty. Under CIC c. 10, an invalidating or disqualifying effect ordinarily requires the law expressly to establish it. A penalty requires the governing penal norm and its conditions. Moral gravity depends on the matter, authority, circumstances, and other moral sources rather than on the adjective alone.

Strong theological reasons likewise do not make every implementing discipline divine. A human norm may protect a divine institution while remaining mutable in its form, procedure, presumption, or allocation of competence.

12.8 Currentness through 16 July 2026

The official code and papal-legislation archive, authentic-interpretation register, and relevant institutional sources were checked through the stated cutoff. The classified overlay includes the 2021 replacement of CIC Book VI; 2022–2023 amendments to code provisions; the 2024 Signatura proper-law amendment; the 2025 Curial Regulations, effective in 2026; a 2025 Vatican constitutional amendment; a May 2026 rescript granting a special faculty concerning CIC c. 699 §2; and Leo XIV’s *Confirma fratres tuos* of 24 June 2026, published 30 June, replacing particular legislation for the Diocese of Rome.

None of those identified acts amends the central source, subject, interpretation, reception, dispensation, or divine-law boundary canons used in this section. That is a documented search result rather than an assurance about unpublished particular or proper law. The prescribed promulgation, the controlling official text, and the law applicable to the actual person and act remain decisive.

13 Current Authorities, Functions, and Forums

13.1 Begin with the function

An office title does not establish what a particular act can do. The analyst first identifies whether the act teaches, legislates, executes, dispenses, authentically interprets, adjudicates, or offers nonbinding advice. Competence over subject matter and persons, juridical form, approval, manifestation, and procedure then determine effect.

Function	Authority capable of exercising it	Effect sought	Ordinary control or challenge
Teaching	Pope and college of bishops; bishops individually or together within the conditions of law; competent doctrinal organs according to their acts.	Doctrinal proposition and the response owed according to its authority.	Text, genre, intent, level of teaching, competent clarification, and the norms on assent.
Legislation	Supreme authority and lower legislators within granted competence.	General juridical norm for defined subjects.	Higher law, promulgation, effective date, authentic interpretation, and legislative change.
Executive governance	Competent ordinaries, superiors, and executive authorities.	General execution of law or a singular decree, precept, rescript, privilege, or dispensation.	Competence, legal basis, facts, hearing, reasons, notification, hierarchical recourse, and judicial review where provided.
Adjudication	Competent ecclesiastical tribunals and judges.	Binding judgment of a controversy or declaration of status.	Jurisdiction, proof, procedure, appeal, complaint of nullity, restitution, or other remedy supplied by law.
Counsel or scholarship	Pastors, advocates, canonists, theologians, commissions, and advisers.	Reasoned assistance to conscience or authority.	Quality of sources and argument; the advice does not itself alter status or create a law.

13.2 Supreme ecclesiastical authority

The Roman Pontiff possesses supreme, full, immediate, and universal ordinary power in the Church and can always exercise it freely (CIC c. 331; CCEO c. 43). The college of bishops is also the subject of supreme and full power, always with its head and never without him (CIC c. 336; CCEO c. 49). The exercise of collegial power and promulgation of ecumenical-conciliar decrees follow CIC cc. 337–341 (CIC 330–367).

No appeal or recourse lies against a sentence or decree of the Roman Pontiff (CIC c. 333 §3). The canon establishes finality in the human ecclesiastical order; the source analysis already stated remains applicable, because supreme ecclesiastical power is exercised within the Church’s divinely received constitution and mission.

13.3 Particular Churches and intermediate bodies

A diocesan bishop possesses ordinary, proper, and immediate power required for his pastoral office except matters reserved by law. He governs with legislative, executive, and judicial power: legislative power is exercised personally; executive power is exercised personally or through vicars general or episcopal according to law; and judicial power is exercised personally or through the judicial vicar and judges (CIC cc. 381, 391; CIC 368–430). CCEO cc. 178 and 191 provide the eparchial bishop’s proper, ordinary, and immediate power and distinguish his personal exercise of legislative power from the exercise of executive and judicial power through the organs provided by law.

Particular councils possess legislative power within universal law; their decrees require the review prescribed by CIC cc. 445–446 before promulgation. A Latin episcopal conference can issue general decrees only where universal law provides or a special mandate grants competence, and only with the voting, Apostolic See review, and promulgation required by c. 455 (CIC 431–459). A conference statement outside that process is not legislation merely because the conference issued it.

Conference teaching follows a separate inquiry. CIC c. 753 and the concluding norms of *Apostolos suos* address authentic conference magisterium. Eastern patriarchal and major-archiepiscopal synods exercise legislative and judicial powers under CCEO cc. 110 and 152 and related law. CCEO c. 150 separately governs the territorial reach of disciplinary laws and certain synodal decisions. Synodal authority is not the Eastern equivalent of the limited legislative competence of a Latin conference.

13.4 The Roman Curia

Praedicate Evangelium, effective 5 June 2022, governs the Roman Curia (text). Curial institutions assist the Roman Pontiff. Article 30 prevents a curial institution from issuing laws or general decrees having the force of law, or derogating from universal law, except in individual and particular cases with papal approval *in forma specifica*. Executive decrees and instructions remain within and subordinate to law.

Leo XIV’s General Regulations of the Roman Curia were issued on 23 November 2025 and took effect on 1 January 2026 *ad experimentum* for five years (official Italian). They regulate preparation, review, approval, and challenge of curial acts. A current audit must therefore identify the institution’s competence, the document’s form and dispositive words, any specific papal approval, its addressees, and the mode by which it becomes effective.

13.5 Authentic interpretation and doctrinal acts

The Dicastery for Legislative Texts promotes knowledge and application of Latin and Eastern canon law, prepares authentic interpretations for specific papal approval, assists authorities, reviews defined normative texts, and studies legal gaps (*Praedicate Evangelium* arts. 175–182; official profile). An entry in its formal authentic-interpretation register has a different juridical basis from an explanatory note, private response, or scholarly opinion.

The Dicastery for the Doctrine of the Faith safeguards doctrine on faith and morals and judges delicts reserved to it under proper norms (*Praedicate Evangelium* arts. 69–78; *Fidem servare*). A doctrinal declaration can authoritatively identify a moral or divine-law proposition. Penal liability, an amendment to a canon, and a singular judgment still require the juridical sources and procedures governing those effects.

13.6 Judicial and administrative remedies

At first instance the diocesan bishop is ordinarily the judge for cases not excepted by law, acting personally or through the judicial vicar and judges (CIC c. 1419). The Roman Rota ordinarily serves as a higher appellate tribunal at the Apostolic See and promotes unity of jurisprudence. The Apostolic Signatura is the supreme tribunal, supervises the administration of justice, and adjudicates the administrative controversies assigned to it under *Praedicate Evangelium* and its proper law.

The Signatura’s 2008 *Lex propria* applies as amended by *Munus Tribunalis* in 2024. A judgment can guide later interpretation, yet CIC c. 16 §3 ordinarily limits a judicial or singular administrative interpretation to the persons and matter decided. Canon 19 permits jurisprudence to assist in a nonpenal gap; it does not turn every sentence into universal law.

Hierarchical recourse under CIC c. 1737 can challenge a decree for any just reason, and c. 1739 gives the hierarchical superior broad remedial powers. CIC cc. 1732–1739 govern the general Latin sequence (CIC 1732–1752); CCEO cc. 996–1006 supply the Eastern sequence. CIC cc. 50–51 and CCEO cc. 1517–1519 govern investigation, hearing, and reasons in the circumstances they specify. Requests for revocation or amendment, notification, short peremptory periods, transmission of the record, and suspension rules can determine whether relief remains available.

The Signatura’s administrative review is narrower: under *Praedicate Evangelium* art. 197 it hears assigned recourses alleging violation of law in a decision or procedure against singular administrative acts issued or approved by dicasteries or the Secretariat of State, ordinarily after hierarchical recourse. Filing does not generally suspend execution; the governing general or special rule must be checked.

13.7 Internal-forum relief

The Apostolic Penitentiary exercises jurisdiction over the internal forum and matters concerning indulgences under *Praedicate Evangelium* arts. 190–193. Its work must be distinguished from external-forum administration and adjudication. A sacramental or nonsacramental internal-forum favor can have external effects only where law provides them; it does not function as a general appeal from a civil court or canonical tribunal.

13.8 What the individual asks of an authority

Needed result	Competent path	Result the path cannot supply by itself
Moral judgment about a contemplated act	Well-formed conscience assisted by authoritative teaching, sound moral reasoning, and qualified pastoral or theological advice.	Civil immunity, canonical dispensation, or an adjudication binding other parties.
Change or authoritative meaning of a general norm	Competent legislator or authentic interpreter.	A finding of disputed facts in an individual case unless the act also supplies a lawful process.
Exception or relief in a concrete case	Competent executive authority, dispenser, contracting party, or civil agency under the governing law.	Dispensation from divine law or an act beyond that authority’s jurisdiction.
External declaration of right or status	Competent canonical tribunal, civil court, or administrative decision maker.	Moral approval of every act that is legally valid or nonpunishable.
Review of an allegedly unlawful act	Appeal, hierarchical recourse, Signatura review, civil judicial review, or another remedy provided by the relevant order.	A universal appellate judgment across both civil and ecclesiastical orders.

Correct classification thus protects the person from two opposite mistakes: seeking an external remedy from someone

who can only advise, and treating a valid external decision as a complete moral judgment.

14 Civil Law, the Holy See, and Vatican City State

14.1 Entities and capacities

Reality	Juridical character	Relevant capacity	Classification control
Catholic Church	A communion with a divinely received constitution; CIC c. 113 §1 attributes moral personality to the Catholic Church by divine ordinance.	Worship, teaching, sanctification, governance, apostolate, and the salvation of souls.	The Latin Church and Eastern Catholic Churches <i>sui iuris</i> possess distinct canonical traditions within the communion.
Holy See or Apostolic See	CIC c. 361 and CCEO c. 48 define the canonical term to include the Roman Pontiff and, as context permits, the central institutions acting with him; CIC c. 113 §1 also attributes moral personality to the Apostolic See. It possesses international legal personality.	Supreme ecclesiastical governance, diplomacy, treaty relations, and international representation of its mission.	It is neither Vatican City State nor simply another name for every curial office.
Roman Curia	Institutions assisting the Roman Pontiff under <i>Praedicate Evangelium</i> .	Doctrinal, administrative, diplomatic, economic, legislative-text, and judicial service within assigned competence.	A curial act is classified by institution, competence, form, and approval; it is not automatically papal legislation.
Canonical juridic person	A public or private canonical subject constituted or recognized under canon law.	Ownership, ministry, office, administration, and legal acts within its purposes and statutes.	It must be identified separately from any civil corporation that holds title, employs workers, or acts on its behalf.
Civil legal entity	A corporation, trust, association, foundation, or other person under the applicable state law.	Civil title, contract, employment, liability, governance, taxation, and litigation.	There is no presumed one-to-one identity with a diocese, institute, parish, or canonical juridic person.
Vatican City State	A distinct territorial civil order created by the Lateran Treaty to secure the Holy See's independence.	Sovereign territorial government, legislation, administration, civil and criminal justice, and state services.	Vatican civil law is not the universal canon law of the Church.

The Roman Pontiff holds supreme ecclesiastical authority and Vatican sovereign power under different titles. An act's legal order, subjects, organ, and effects follow the capacity in which power is exercised.

14.2 Independent civil obligation

Catholics ordinarily owe obedience to just civil authority; a civil norm need not be received into canon law before it binds civilly. Civil validity and enforcement, canonical effect, and moral obligation remain separate. Civil-law duties involving employment, reporting, privacy, professional licensing, property, corporate governance, taxation, or procedure require the actual jurisdiction and current state source.

A civil entity can serve one or more canonical works without being canonically identical to any of them. Title documents, articles and bylaws, statutes, agency, representation, beneficial control, and both systems' authorization rules must be examined. A civil director may also hold a canonical office, but the two capacities do not merge.

14.3 Canonical reception of civil law

CIC c. 22 gives civil laws canonical effects where canon law yields to them, insofar as they are not contrary to divine law and canon law does not provide otherwise. CCEO c. 1504 provides the Eastern rule. This is sometimes called canonization of civil law: a canonical source assigns a civil norm a canonical effect.

CIC c. 1290 receives the territorial civil law concerning contracts both in general and in particular and concerning payments, with the same effects in canon law for matters subject to Church governance, unless divine law is contrary or canon law provides otherwise, and without prejudice to c. 1547 (CIC 1254–1310). CCEO c. 1034 provides its Eastern rule. Reception promotes coordination but remains conditional and subject-specific.

CIC c. 1296 illustrates the consequence precisely. When ecclesiastical goods have been alienated without the required canonical formalities but the alienation is civilly valid, competent ecclesiastical authority must decide, after considering all circumstances, whether and what action should be taken to vindicate the Church's rights. The canon does not make every civil transaction canonically valid or every canonical defect civilly ineffective.

14.4 Agreements with states

CIC c. 3 and CCEO c. 4 preserve agreements already entered by the Apostolic See with nations or political societies from abrogation or derogation by the codes. Later agreements bind according to their own text and legal basis. In every case the parties, signature and ratification, territory, effective date, reservations, later amendments, and implementing civil law must be established.

Agreements can address legal personality, appointments, education, chaplaincy, property, taxation, marriage effects, archives, and public freedom. The Secretariat of State's Section for Relations with States and International Organizations handles diplomatic relations and, under *Praedicate Evangelium* art. 49, concordats and other agreements. Coordination does not turn a civil official into a canon legislator or make canon law automatically enforceable in a civil court.

14.5 Parallel effects: reporting and safeguarding

The same alleged abuse can create moral duties to protect, a canonical reporting obligation, a civil mandatory-reporting duty, a canonical preliminary investigation, employment consequences, civil liability, and criminal process. Information may move among these processes only as their governing rules permit; the processes use different elements, burdens, protections, and remedies.

The updated *Vos estis lux mundi*, effective 30 April 2023, establishes an ecclesiastical reporting and investigation framework while preserving rights and duties under state law, including reporting obligations (text). A canonical report does not replace a required civil report. A civil disposition does not by itself decide every canonical element. Information protected by the sacramental seal requires the distinct source analysis stated in the applied dossiers.

14.6 Parallel effects: marriage

The marriage of Catholics, even when only one party is Catholic, is governed by divine and canon law without prejudice to civil authority over merely civil effects (CIC c. 1059; compare CCEO c. 780). A valid matrimonial contract between baptized persons is necessarily a sacrament (CIC c. 1055 §2; CCEO c. 776 §2). Canon law governs matters including capacity, impediments, consent, form, proof, and ecclesiastical adjudication; civil law governs civil status and consequences within the state.

A civil divorce can terminate civil effects without establishing that a canonical bond has ceased. A canonical judgment declaring nullity that has become executive establishes in the canonical forum that no valid bond arose, subject to any prohibition on a new marriage; civil consequences depend on applicable state or treaty law. The forums may consider the same history while using different legal questions, proof, and relief.

14.7 Holy See sovereignty and the Vatican territorial order

The Lateran Treaty of 1929 recognizes Holy See sovereignty in international affairs and creates Vatican City State for the purpose of securing its independence (arts. 2–4; English text; official Italian archive). The Holy See and the State possess distinct international personalities despite their personal union in the Roman Pontiff.

The Vatican Fundamental Law issued on 13 May 2023 and effective 7 June 2023 assigns the fullness of sovereign legislative, executive, and judicial powers to the Roman Pontiff. The Pontifical Commission exercises the ordinary legislative function under arts. 7–14. Under art. 15 its President also serves as President of the Governorate and exercises the executive function, using the Governorate whose organs participate in that function (official Italian). Leo XIV’s act of 19 November 2025 amended art. 8, no. 1, concerning the Commission’s composition and presidency (text).

Vatican Law N. LXXI on sources of law makes the canonical order the first normative source and first interpretive criterion. Vatican fundamental and enacted laws, international law and agreements, and supplementary sources then operate according to the statute (official publication). The divine-law, general-canonical-principle, Lateran, and factual-applicability limits in art. 3 apply specifically to supplementary reception of Italian law; they should not be presented as one undifferentiated proviso governing every Vatican source.

A decree of 16 January 2024 clarified publication of Vatican normative measures. Without changing Law N. LXXI art. 2, it deems them published when posted at the specified Vatican locations and on the State’s institutional website, independently of later appearance in the supplement to the *Acta Apostolicae Sedis* (text). Currentness therefore requires the legally relevant publication sources, not only a base compilation.

14.8 Applying the act-first method across orders

When a canonical and civil relation meet, the person begins with the proposed act and material facts. The audit then identifies the exact canonical and civil persons, the capacity in which each actor proceeds, the governing instruments and jurisdictions, any reception or agreement rule, and the effects sought. It concludes by selecting the forum able to grant each remedy and by stating the moral duties that remain whatever that forum decides.

This method avoids both entity collapse and forum collapse. The Church, Holy See, Curia, canonical juridic person, civil corporation, and Vatican State can be connected in fact while remaining distinct in law. A decision in one order can be relevant evidence in another; relevance is not automatic identity of status, liability, or remedy.

15 Applied Obligation Accounts

These dossiers test the method without deciding an actual case. Each begins with a person and an act, separates the norms, records the effects each forum can give, and identifies the next responsible step.

15.1 A professional ordered to participate in disputed conduct

A licensed employee receives an instruction said to be required by civil regulation and an employment agreement. The employee believes that performing the assigned step would constitute wrongful participation in another act. Four inquiries must remain separate:

1. The civil lawyer identifies the exact statute, regulation, license condition, employer duty, available accommodation, enforcement authority, and remedy. A supervisor’s summary is not yet the governing text.
2. Moral analysis identifies the employee’s own chosen act, intention, causal contribution, proximity, alternatives, duress, scandal, and effects on the person served and on coworkers. Labels such as direct, indirect, formal, or material cooperation require the facts that support them.
3. Contract and professional rules determine role duties and procedures for reassignment, notice, referral, continuity, confidentiality, or withdrawal. Those duties may themselves protect vulnerable persons.

4. If performance would require an intrinsically wrongful choice, a well-formed and certain conscience requires refusal. The person should use lawful accommodation and review where possible, prepare for civil or employment consequences, and reduce foreseeable harm to others without performing the prohibited act.

Evangelium vitae 73–74 supplies a specific analysis for laws attacking human life, including legislative harm reduction and cooperation (text). Its concrete conclusions should not be transferred to unrelated disputes without a new moral and legal analysis.

15.2 A reporting duty and a confidentiality duty

Suppose a cleric, employee, clinician, teacher, or officer learns facts suggesting abuse or another grave danger. Civil law, canon law, professional regulation, contract, office, and moral duties may all bear on disclosure. The first question is how the information was obtained and what disclosure is proposed.

Information learned in sacramental confession is governed by the inviolable sacramental seal under CIC c. 983 and CCEO c. 733. Information learned in a nonsacramental conversation, administrative file, clinical relationship, or employment investigation requires a different analysis. *Vos estis lux mundi* preserves state-law rights and duties, including reporting duties, while establishing its ecclesiastical reporting framework (text).

The responsible person therefore records the source and capacity in which each fact was received, the exact civil and canonical reporting rule, any privilege or exception, imminent-safety duties, the authorized recipient, required content, deadline, and protections against retaliation. A canonical report, civil report, safeguarding measure, and public statement are different acts. Advice must be obtained without disclosing protected information beyond what the governing rule permits.

15.3 Marriage in sacramental, canonical, and civil forums

Two persons can have one history and more than one legally relevant status. Marriage is a natural institution; Christ raised the matrimonial covenant between baptized persons to the dignity of a sacrament (CIC c. 1055). Divine and canonical law govern the marriages of Catholics, while civil authority governs merely civil effects (c. 1059).

Canonical law determines matters including capacity, impediments, consent, form, proof, and tribunal process. Civil law determines civil status, licensing, property, support, custody, and dissolution of civil effects. A civil divorce can alter civil rights without deciding whether a canonical bond arose. A declaration of canonical nullity judges whether the alleged bond validly arose; it does not itself assign every civil consequence.

For the individual, the relevant account includes baptism and Church ascription, prior bonds, domicile, form, dispensations, civil status, dependents, property, pending proceedings, and the relief actually sought. A pastoral judgment, tribunal sentence, and civil judgment possess different authorities and effects. Obligations to support children, avoid scandal, tell the truth, and repair harm can remain while status is contested.

15.4 Ecclesiastical property held through a civil entity

A diocesan or religious work may operate through a civil corporation while its assets belong canonically to a public juridic person. A board member can therefore be a civil fiduciary, holder of a canonical office, contractual agent, and moral steward at the same time. Those relations are connected but are not interchangeable.

Natural justice governs honesty, promises, stewardship, fraud, and the common destination of goods. Civil law governs title, corporate authority, contracts, registration, fiduciary duty, creditor protection, and remedies. Canon law governs ecclesiastical ownership and administration and can receive civil contract rules through CIC c. 1290. If an asset is lawfully designated stable patrimony and the applicable thresholds or circumstances are met, the alienation can require valuation, consultation, consent, or permission under cc. 1291–1295.

An alienation of ecclesiastical goods made without the required canonical formalities may be civilly effective yet canonically invalid. When those conditions are present, CIC c. 1296 directs competent ecclesiastical authority to decide whether and how to vindicate Church rights. Before acting, the individual must identify the exact civil and canonical entities, title, asset classification, authority granted, approvals, conflicts of interest, and consequences for

beneficiaries and counterparties. Invoking Church ownership does not cure a defective civil instrument; civil signature authority does not supply missing canonical permission.

15.5 One wrongful act, several forms of responsibility

An intentional attack on innocent life is contrary to natural moral law and the revealed command against murder. The same event may also fall within civil criminal law, canonical penal law, employment discipline, tort law, and duties of restitution. Each order defines its own elements, subjects, evidence, defenses, and sanctions.

Under current Latin canon law, CIC c. 1321 presumes the accused innocent until the contrary is proved, and punishment requires an externally committed violation gravely imputable by malice or culpability. Once the external violation has been committed, imputability is presumed unless otherwise apparent. Canons 1322–1325 govern excuses and mitigation. Canon 1399 permits punishment for an otherwise unprovided external violation of divine or canon law only when the violation’s special gravity demands punishment and urgent need requires prevention or repair of scandal. The CCEO requires analysis under its distinct penal provisions.

Objective moral wrong, moral culpability, civil guilt, canonical imputability, employment cause, and civil liability are therefore separate conclusions. An acquittal for failure of penal proof does not declare an act morally good. A grave moral judgment does not eliminate the prosecution’s burden or create a penalty that positive law does not supply.

15.6 Sunday worship, work, and family duty

A Latin Catholic is scheduled to work on Sunday and is responsible for dependents. The underlying duties include worship of God, observance of the Lord’s Day, support of family, justice to employer and coworkers, and protection of health or public necessity. CIC cc. 1246–1248 specify the Latin obligation to participate in Mass on Sundays and holy days, the period for fulfillment, and the response where participation is impossible because of the absence of a sacred minister or for another grave cause; particular law can alter the holy-day calendar within competence (CIC 1244–1253).

The individual must establish rite, territory, schedule, available celebrations, the nature and necessity of the work, dependents’ needs, contractual options, and any competent dispensation or commutation under c. 1245. A dispensation from an ecclesiastical obligation does not remove the continuing natural and revealed duty to worship God. The natural duty by itself does not select every feast, time, territorial transfer, excuse, or juridical consequence.

15.7 Religious exercise and public authority

A person or community seeking to worship, teach, assemble, or organize can invoke a dignity-grounded civil immunity and the applicable constitutional or statutory protection. The civil forum must determine standing, governmental action, the legal standard, evidence, and remedy. *Dignitatis humanae* supplies authoritative Catholic teaching on the natural ground and due limits of the right; it does not itself file a civil claim or determine a state’s procedural law.

Public authority may regulate conduct to protect the rights of others and a just public order. The regulation must issue from competent authority, rest on evidence, and be applied fairly; religious error or majority dislike is not enough. The religious actor remains responsible for the rights of neighbors, workers, children, and other affected persons. Natural ground, civil recognition, ecclesiastical mission, and a concrete remedy thus belong to one account without becoming one source.

15.8 What every dossier establishes

The practical result

One act can be morally forbidden, civilly effective, canonically invalid, contractually actionable, nonpenal, and still subject to restitution. Another act can be morally indifferent in itself yet prohibited by a valid and just positive rule, so that compliance—or a competent exception or accommodation—is required. The responsible conclusion states each effect separately, selects the competent forum for relief, and then identifies what this person

| must do now while protecting the rights of others.

16 Objections and Limiting Cases

16.1 Does legal validity imply moral authority?

Legal validity and moral obligation answer different questions. A source rule can identify an enactment that officials must apply even when the enactment is unjust. That fact explains its external effects; it does not make official will the source of justice. Conversely, a correct moral objection does not automatically eliminate jurisdiction, liability, or the need for a legal remedy.

Positive law is therefore broader than legal positivism. Every developed legal order has enacted or otherwise posited norms. Legal positivism is a family of theories about law's social sources and its relation to morality. Catholic natural-law criticism is strongest when it addresses the particular theory and shows why social pedigree cannot by itself supply moral obligation.

16.2 Can natural law develop or change?

Basic moral goods and first principles do not change through enactment. Human knowledge of them, factual premises, derived conclusions, positive specifications, and institutional applications can develop. A rule historically described as natural may combine a sound principle with a false account of a class of persons or with a contingent custom. Revision then corrects the inference; it does not make human will the author of the underlying good.

This distinction permits historical accountability. Appeals to nature helped criticize conquest, slavery, and state absolutism, but contested anthropology also narrowed who counted as a bearer of the announced rights. The evidence must show both the principle and the path from that principle to the proposed rule.

16.3 Can divine positive law change?

Human authority cannot repeal or dispense a divine norm. Salvation history nevertheless contains distinct covenantal economies, and Christ fulfills the Old Law. Its ceremonial and judicial precepts cease in their former juridical form without a creature exercising legislative superiority over God; its moral precepts retain the natural and revealed content that the New Law fulfills. Analysis must specify the norm, addressee, covenantal setting, and mode of fulfillment.

16.4 Can the Pope dispense divine law?

Papal power can teach, authentically declare, protect, and apply divine law. It can dispense merely ecclesiastical law within the conditions established by law. It can also judge facts and juridical conditions on which a divine-law consequence depends. These are distinct acts. A declaration that a valid bond never arose does not dissolve that bond; a dispensation from a human form requirement does not dispense the nature of marriage.

The same precision applies beyond marriage. Supreme ecclesiastical power is supreme among human authorities in the Church; it remains a received ministry within the Church's divine constitution and end.

16.5 May a person disobey an unjust command?

Some commands must be refused because the chosen act would be intrinsically wrongful or otherwise gravely impermissible. Other defective rules can be obeyed temporarily to avoid disproportionate disorder while interpretation, exemption, litigation, recourse, or reform is pursued. The decision depends on the exact act, certainty and gravity of the moral judgment, the person's cooperation, available alternatives, the rights of others, and the positive consequences of refusal.

Conscience does not become an appellate tribunal. It determines the person's moral choice after responsible formation. The external forum may still impose effects, and the person may have duties of notice, care, restitution, or orderly transition. Where the positive order offers a remedy, using it can itself be an obligation of justice rather than a compromise of principle.

16.6 Does religious freedom protect error?

The civil right protects persons and communities from coercion within due limits. Its subject is the person, not the truth-value of a proposition. The right neither declares every belief true nor removes the moral duty to seek truth. Positive law gives the immunity enforceable form and can regulate its exercise for the rights of others and just public order.

Special civil recognition of one religious community is not categorically excluded by *Dignitatis humanae*; effective freedom and equality for all must still be secured. A state may neither make theological truth depend on majority vote nor use asserted neutrality to exclude religious persons and communities from public freedom.

16.7 Is everything in a code human and mutable?

The CIC and CCEO are human legislative instruments, but their propositions do not all have the same source. A canon may declare a divine institution or norm, enact a mutable discipline, receive civil law, preserve an agreement, recognize custom, create a presumption, or allocate a forum. The proposition must be isolated before mutability, dispensability, or effect can be determined.

The reverse inference also fails. Theological importance does not make every implementing rule divine. A human rule can protect an unchangeable truth while remaining reformable in its procedures, terminology, presumptions, or jurisdictional arrangements.

16.8 What error most often distorts the whole analysis?

The central error is an unsupported move among source, competence, and effect. A natural good does not authorize every official to pursue it by every means. An ecclesiastical norm is not dispensable by every superior. A civil permission is not moral approval. A moral prohibition does not automatically create civil invalidity, canonical nullity, or a penalty.

The remedy is equally concise: identify the proposition; establish the facts and subjects; classify its source and rank; determine the competent authority and forum; separate moral, validative, disciplinary, penal, and remedial effects; then state the action required of the person.

17 Historical Synoptic Timeline and Source-First Method

17.1 Selected developments and their limits

Date	Witness or development	Contribution and limit
c. 441 BC	Sophocles, <i>Antigone</i>	Dramatizes conflict between a ruler's decree and an unwritten divine norm; it is not a systematic natural-law treatise.
4th c. BC	Plato and Aristotle	Distinguish nature and convention, analyze rational order and political justice, and explain equity as reasoned correction where a general formulation fails in an unforeseen case.
3rd–1st c. BC	Stoicism and Cicero	Relate common reason, nature, divine governance, and the human community; Cicero uses right reason to judge enacted rules.

Date	Witness or development	Contribution and limit
2nd c. BC–3rd c. AD	Roman jurists and magistrates	Develop civil, gentium, natural, praetorian, written, and unwritten law together with status, action, proof, and remedy. The surviving texts preserve several taxonomies.
1st c.	New Testament and Acts 15	Place natural moral knowledge, covenant fulfilled in Christ, civil obedience, ecclesial authority, and God’s prior claim in one scriptural field. Acts 15 shows authority, dispute, discernment, written communication, reception, and differentiated obligations.
1st–3rd c.	Early ecclesial communities	Govern worship, ministry, admission, discipline, charity, and reconciliation before imperial recognition through apostolic, episcopal, conciliar, customary, and penitential forms.
4th–6th c.	Christian empire, Augustine, and Gelasius	Civil and ecclesiastical action acquire new points of cooperation and conflict. Augustine relates temporal peace to eternal justice and later defends coercive correction; Gelasius distinguishes royal and episcopal offices.
533–535	Justinianic compilation and Novel 6	Consolidate heterogeneous Roman law and present imperial and sacerdotal gifts as requiring concord. Justinian’s legislation remains imperial law, not an ecclesiastical code.
7th–10th c.	Trullo, nomocanonical collections, and regional collections	Conciliar canons, imperial laws concerning ecclesial affairs, patristic sources, and local reception develop in distinct Eastern and Western institutional settings.
11th–12th c.	Reform, schools, and Roman-law recovery	Conflicts over office and ecclesiastical liberty, renewed civilian learning, papal adjudication, and new collections create demand for systematic source reconciliation.
c. 1140	Gratian and the decretists	Place scriptural, patristic, conciliar, papal, customary, and Roman-derived texts into juristic concord; later teachers refine the relations among nature, revelation, custom, and ecclesiastical determination.
1234 and after	<i>Liber Extra</i> , decretalists, and courts	Papal decretals, learned commentary, and Romano-canonical procedure make source hierarchy, jurisdiction, proof, and remedy operational within the <i>ius commune</i> .
13th c.	Aquinas and mature scholasticism	Coordinate eternal, natural, human, and revealed divine law; distinguish conclusion from determination; and analyze injustice, custom, change, dispensation, and equity.
15th–16th c.	Salamanca, conquest, and Valladolid	Apply natural law, <i>ius gentium</i> , rights, jurisdiction, and evangelization to Indigenous peoples and imperial claims. The debates expose both critical resources and contested assumptions.
1545–1612	Trent and Suárez	Trent distinguishes ecclesiastical competence from its changeable disciplinary specifications. Suárez synthesizes lawgiver, obligation, promulgation, natural and human law, custom, privilege, and revealed law.
16th–18th c.	Reformation and confessionalization	Territorial religious settlements, war, toleration, migration, sovereignty, and colonial rule reorganize civil and ecclesiastical jurisdiction. Toleration develops before equal individual religious liberty.
18th–19th c.	State consolidation and codification	National codes and administrative institutions seek unified, accessible law and reduce reliance on the plural sources of the learned <i>ius commune</i> . Codification can serve natural-law projects and is not identical to legal positivism.
19th–20th c.	Austin, Kelsen, Hart, and their critics	Distinct positivist theories identify law through commands, norm-validity, or social rules without all endorsing legal injustice. Fuller and Radbruch test legality and the problem of extreme injustice from different premises.

Date	Witness or development	Contribution and limit
1864–1888	Pius IX and Leo XIII	Oppose religious indifferentism and state moral autonomy, defend ecclesiastical independence, and articulate concord between distinct powers within a confessional horizon.
1917	First Latin code	Systematizes Latin discipline while preserving unincorporated natural and divine-positive law under c. 6, no. 6. It is superseded by the 1983 CIC.
1929	Lateran Treaty	Recognizes Holy See sovereignty and creates Vatican City State as a territorial guarantee of independence.
1937–1948	Totalitarian crisis and postwar rights	Papal teaching opposes racial and state absolutism; Radbruch addresses extreme statutory injustice; the Universal Declaration expresses common rights and duties in a positive international instrument that was declaratory rather than a treaty.
1953	Pius XII, <i>Ci riesce</i>	Permits non-repression of error for a higher common good; the toleration analysis precedes Vatican II's dignity-grounded civil right.
1963–1965	<i>Pacem in terris</i> and Vatican II	Place reciprocal personal rights and duties, public authority, temporal autonomy, Church–political cooperation, and civil religious immunity within one moral and juridical account.
1983	CIC	The current Latin code, as amended, governs subjects, divine-law limits, civil-law reception, authority, procedure, and remedies.
1990–1991	CCEO	The CCEO provides common law for all and only the Eastern Catholic Churches, preserving distinct sources, institutions, and synodal structures.
1993–2009	<i>Veritatis splendor</i> and the ITC study	Clarify rational participation, embodiment, moral object, and contemporary natural-law method. The ITC document is expert theology rather than an act of the Magisterium.
2022–2026	Curial, canonical, and Vatican legislation	Revises curial structure, penal law, tribunal law, competencies, Vatican constitutional law, and Roman particular law. The changes demonstrate why current research requires an amendment overlay beyond base codes.

17.2 A source-first obligation sequence

For a proposition that may govern action:

1. **State the act and material facts.** Record what this person would do or omit, in what capacity, at what time, and with what effects on others.
2. **Map status and jurisdiction.** Establish moral agency, canonical personality and ascription, civil presence or status, office, family relation, contract, property, and other facts that can trigger a norm.
3. **Isolate every norm.** Quote the relevant clause. Keep a moral principle, revealed command, canon, statute, administrative act, judgment, contract, and policy on separate rows.
4. **Identify author, genre, and text.** Verify competence, the controlling language, translation status, promulgation or notification, effective date, and amendments.
5. **Test applicability.** Determine subjects, territory, time, factual trigger, rank, special or later law, exception, excuse, privilege, dispensation, and reception or treaty rule.
6. **Interpret in the competent tradition.** Use text, context, purpose, authoritative interpretation, jurisprudence, and the order's own sources. Record unresolved textual or factual disputes.
7. **Separate effects.** State moral obligation, validity and status, liceity, enforceability, culpability, penalty, evidence, remedy, and restitution independently.

8. **Assess the concrete moral choice.** Analyze object, intention, circumstances, cooperation, duress, alternatives, scandal, prior commitments, and the rights of affected persons.
9. **Use the proper forum.** Seek interpretation, accommodation, dispensation, administrative recourse, appeal, civil review, negotiation, or legislative reform from the authority able to grant it. Verify deadlines and suspension.
10. **Decide, protect, and review.** Refuse morally impermissible action, perform remaining duties, reduce harm to third parties, preserve a reasoned record, and reopen the analysis when facts or law change.

17.3 A compact research notation

Person, capacity, and act → material facts → exact norm and authoritative text → source, author, genre, rank, and date → jurisdiction and applicability → interpreter and forum → moral and juridical effects → relief and deadline → action, safeguards, confidence, and review trigger.

The notation exposes category shifts. It prevents a historical witness from becoming current law, a teaching from becoming a penalty, a private judgment from becoming a dispensation, a local decision from becoming universal legislation, and a moral conclusion from becoming an unproved civil remedy.

17.4 Routes through the study

Reader	Begin with	Then test
Person facing concurrent duties	The thesis, field survey, obligation account, and applied dossiers.	Then test the framework against controlling current and particular law and complete local facts; obtain qualified moral, civil, and canonical advice.
Philosopher or moral theologian	Vocabulary, the nature of law, Greek and Roman sources, Scripture, Aquinas, and contemporary synthesis.	Institutional competence, procedure, and external effects that philosophical classification alone cannot establish.
Canonist or civil lawyer	The obligation account, current sources and authorities, civil-law interaction, and applied dossiers.	The philosophical and historical meanings behind inherited legal terms and the distinct moral analysis of the person's act.
Historian	The chronological chapters, timeline, references, and research matrices.	Edition, transmission, original jurisdiction, institutional problem, later reception, and the danger of retrospective categories.
Pastor or formator	The person-centered method, conscience analysis, objections, and dossiers.	Current universal, particular, proper, and civil law before offering a conclusion about an actual case.

18 Conclusion: Moral Measure, Positive Authority, and Responsible Action

Natural and positive, divine and human law classify different aspects of obligation. Natural law is rational participation in eternal law, known through practical reason in principles concerning human goods and acts. Revelation gives divine positive law in salvation history: the Old Law is fulfilled and the New Law given in Christ. Human positive law is enacted or received by competent ecclesiastical or civil authority to give determinate form to common life. Human knowledge and positive recognition of natural law are real, but they do not constitute a fourth, human-authored natural source.

The distinctions answer two recurring errors. Institutional pedigree alone does not make an enactment just or morally obligatory. A higher-law claim, however sincere, does not by itself establish facts, jurisdiction, invalidity, penalty, dispensation, or remedy. Moral truth measures every human order; lawfully constituted offices and procedures determine the external effects entrusted to them. Justice requires both conclusions to be stated.

History explains why the vocabulary cannot be flattened. Greek philosophy supplied questions of nature, convention, justice, and equity. Roman jurisprudence joined classifications of law to status, action, and remedy. Scripture and early ecclesial practice joined creation, covenant, civil obedience, God's prior claim, and Church authority. Canonists, courts, and scholastics reconciled discordant sources and developed jurisdiction, proof, two fora, determination, dispensation, and equity. Confessionalization, codification, positivist jurisprudence, totalitarian rule, postwar rights, Vatican II, and the current Latin and Eastern codes transformed institutions and reshaped the terms in which those inherited questions are asked.

The practical subject throughout is one person. That person may simultaneously bear natural and revealed moral duties, civil and canonical obligations, family responsibilities, office and professional duties, contractual commitments, and duties toward vulnerable third parties. These relations overlap without forming one human appellate hierarchy. Each civil or ecclesiastical authority gives effects within its competence; neither replaces conscience, and conscience replaces neither.

A responsible obligation account therefore identifies the act and facts, the person's statuses and roles, every norm and its authoritative text, its subjects and factual trigger, its rank and currentness, and the effect claimed in each forum. It then distinguishes moral obligation from validity, liceity, enforceability, culpability, penalty, evidence, and remedy. Apparent conflicts should be interpreted, harmonized, accommodated, or reviewed where possible. A command requiring morally impermissible action must be refused; refusal does not erase duties to protect others, use competent remedies, accept or contest external consequences lawfully, and repair attributable harm.

Fundamental point

Law reaches its end through responsible persons acting within communities. Natural and revealed norms supply the moral measure; human positive law supplies competent institutions, determinate rules, proof, and remedies. The person's task is to give each norm its proper authority and effect, choose what is morally right, and remain accountable for the effects of that choice in every forum that actually has competence.

19 Sources and Further Reading

Online sources were last checked 16 July 2026 unless the research audit records another date. Links point to the exact witness used where possible. Short phrases are quoted only where the wording itself matters; the study otherwise paraphrases. The promulgated official Latin texts control for the current codes. Ancient web translations are reading aids and are not represented as critical editions.

19.1 Scripture

- United States Conference of Catholic Bishops, New American Bible, Revised Edition: Jeremiah 31; Matthew 5; Matthew 22; John 13; Acts 5; Acts 15; Romans 2; Romans 13; 1 Corinthians 5; and 1 Peter 2.
- Pontifical Biblical Commission, *The Bible and Morality: Biblical Roots of Christian Conduct* 151–153 (2008), used as a modern ecclesial reading of the Acts 15 process.

19.2 Greek philosophy and Stoic witnesses

- Sophocles, *Antigone* 441–460, Perseus Greek and English witness; R. C. Jebb's commentary at line 454.
- Plato, *Gorgias* 482e–484c; *Laws* I; and *Laws* X, Perseus witnesses.
- Aristotle, *Nicomachean Ethics* V.7; *Rhetoric* I.13; and *Politics* III.16, Perseus witnesses.
- Diogenes Laertius, *Lives of Eminent Philosophers* VII.87–89, reporting Stoic doctrine.

- Cleanthes, *Hymn to Zeus*, lines 1–5, 12–26, and 31–39; Greek witness in the Bibliotheca Augustana; Johan C. Thom, *Cleanthes' Hymn to Zeus: Text, Translation, and Commentary* (Tübingen: Mohr Siebeck, 2006).
- Chrysippus, *On Law*, fragment preserved by Marcian at Digest 1.3.2 (SVF III.314).

19.3 Roman philosophy and jurisprudence

- Cicero, *De legibus* I and II, Latin Library witness; *De re publica* III.33, fragment transmitted at Lactantius, *Divine Institutes* VI.8.6–9. Modern translation control: Cicero, *The Republic and The Laws*, trans. Niall Rudd (Oxford: Oxford University Press, 1998).
- Gaius, *Institutes* 1.1–7, Latin text.
- Justinian, *Digest* 1.1, 1.3, 1.5, and 1.8; 44.7; and 50.17, Grenoble Roman Law collection; modern translation control: *The Digest of Justinian*, trans. Alan Watson, rev. English-language ed., 2 vols. (Philadelphia: University of Pennsylvania Press, 1998).
- Justinian, *Institutes* 1.1–1.3, Latin text based on Krueger; J. B. Moyle, English translation, used only as an older aid.
- Justinian, Novel 6, English witness in S. P. Scott's older translation; cited for the imperial presentation of sacerdotal and imperial gifts, not as current ecclesiastical law.

19.4 Patristic, medieval, and scholastic sources

- *Didache*, especially chs. 1–5 and 15; *Epistle to Diognetus* 5; Tertullian, *Apology* 33–34; Lactantius, *Epitome of the Divine Institutes* 54.
- Augustine, *Contra Faustum* XXII.27; *City of God* XIX.17; *De libero arbitrio* I.5–6; Letter 93, 16–17; and Letter 185, 23–26.
- Gelasius I, *Famulae pietatis* (494), received at Gratian D.96 c.10, Friedberg edition witness; compare D.96 c.6.
- Gratian, *Decretum*: D.1 dictum before c.1; D.1 c.1; D.1 c.6; D.1 c.7; D.1 c.8; D.1 c.9; and D.4 c.2. These links present Friedberg's 1879 text without its critical apparatus. Also Anders Winroth, ed., *Decretum Gratiani*, first recension, edition in progress (version 21 November 2025).
- Rufinus, *Summa Decretorum*, ed. Heinrich Singer (Paderborn, 1902), 4–10, public scan.
- Gregory IX, *Liber Extra* (1234), with text, translation aids, and source orientation at the Colby Canon Law project. The medieval text is used historically; edition and decretal context control.
- Thomas Aquinas, *Summa theologiae* I–II, qq. 90, 91, 93, 94, 95, 96, and 97; II–II q. 120 on equity; I–II qq. 98–108 on Old and New Law. Latin–English comparison: Aquinas.cc.
- Francisco de Vitoria, “On the American Indians” (*De Indis*), in *Political Writings*, ed. Anthony Pagden and Jeremy Lawrance (Cambridge: Cambridge University Press, 1991), 231–292, especially q. 1 at 239–251 and its conclusion at 250; compare the older Nys translation witness. The Valladolid sources and their contested imperial premises are controlled through *The Valladolid Debate (1550–1551)*.
- Francisco Suárez, *De legibus ac Deo legislatore*, especially I.5–12; II; III–IV; VII on custom; VIII on privilege; and IX–X on Old and New divine law, in *Opera omnia*, vols. 5–6 (Paris: Vivès, 1856). Paraphrases were checked against the cited Latin edition; no unverified modern translation is quoted.

19.5 Early modern religious settlements

- Religious Peace of Augsburg (25 September 1555), English translation and German source witness in German History in Documents and Images.
- Instrumentum Pacis Osnabrugensis (24 October 1648), especially art. V, Latin and German source witness in the Westfälische Geschichte portal.

19.6 Councils, papal teaching, and catechetical synthesis

- Council of Trent, Session VII, canon 8 on baptism (3 March 1547), and Session XXIV, canon 4 on matrimony and decree *Tametsi* (11 November 1563), convenient English witnesses at Session VII and Session XXIV; Latin conciliar text controls.
- Pius IX, *Quanta cura* and appended *Syllabus* (8 December 1864), official Latin.
- Leo XIII, *Immortale Dei* (1 November 1885) and *Libertas praestantissimum* (20 June 1888).
- Pius XI, *Mit brennender Sorge* 29–31 (14 March 1937).
- Pius XII, *Summi Pontificatus* (20 October 1939) and *Ci riesce* (6 December 1953).
- United Nations General Assembly, Universal Declaration of Human Rights (10 December 1948), especially the preamble and arts. 1, 18, and 28–30. Historical international declaration, not a treaty or an ecclesiastical source.
- John XXIII, *Pacem in terris* (11 April 1963).
- Second Vatican Council, *Dignitatis humanae* (7 December 1965) and *Gaudium et spes* (7 December 1965), especially nn. 16, 36, 42–43, and 74–76.
- *Catechism of the Catholic Church* 1950–1986, moral law; 1954–1960, natural law; 1776–1802, conscience; 2234–2246, civil authority and Church; and 2284–2287, scandal.
- John Paul II, *Veritatis splendor* (6 August 1993), especially nn. 35–64 and 79–83; *Evangelium vitae* (25 March 1995), especially nn. 68–74.
- International Theological Commission, *In Search of a Universal Ethic: A New Look at the Natural Law* (2009). Expert theological study, not an act of the Magisterium.

19.7 Current canon law and ecclesiastical institutions

- Benedict XV, *Providentissima Mater* (27 May 1917), promulgating the first Latin code; 1917 CIC c. 6, no. 6, in the official AAS code volume, preserving unincorporated natural and divine-positive law while abrogating other disciplinary law within its rule.
- John Paul II, *Sacrae disciplinae leges* (25 January 1983), promulgating the CIC; official Latin CIC index; Holy See English index.
- CIC primary loci: cc. 7–22; 23–28; 29–34; 35–93; 96–123; 129–144; 208–223; 330–367; 368–430; 431–459; 747–755; 998–1165; 1254–1310; 1311–1363; 1400–1500; and 1732–1752.
- John Paul II, *Sacri canones* (18 October 1990), promulgating the CCEO; official Latin cc. 1–409, 410–1006, and 1007–1546. Canon Law Society of America, *Code of Canons of the Eastern Churches: Latin–English Edition* (Washington, DC: CLSA, 2001), translation aid.
- Francis, *Praedicate Evangelium* (19 March 2022), effective 5 June 2022.
- Francis, *Vos estis lux mundi* (updated 25 March 2023), effective 30 April 2023.
- John Paul II, *Apostolos suos*, especially concluding arts. 1–4 (21 May 1998), on episcopal-conference doctrinal declarations.
- Dicastery for Legislative Texts, official authentic-interpretation register and official profile.
- Francis, *Fidem servare* (11 February 2022); Congregation for the Doctrine of the Faith, revised norms on delicts reserved to the Congregation (2021).
- Benedict XVI, *Antiqua ordinatione* and the Apostolic Signatura’s annexed *Lex propria* (21 June 2008), as amended by Francis, *Munus Tribunalis* (28 February 2024).
- Leo XIV, General Regulations of the Roman Curia (23 November 2025), effective 1 January 2026 *ad experimentum* for five years.
- Holy See, Codes of Canon Law and amendment archive; Francis, *Pascite gregem Dei* (2021), *Recognitum Librum VI* (2022), *Competentias quasdam decernere* (2022), *Vocare peccatores* (2023), and *Expedit ut iura* (2023); Leo XIV, rescript concerning CIC c. 699 §2 (28 May 2026) and *Confirma fratres tuos* (24 June 2026), particular legislation for the Diocese of Rome published 30 June 2026.

19.8 Holy See, treaties, and Vatican City State

- Lateran Treaty (11 February 1929), English text; official Italian archive.
- Vatican City State, Fundamental Law of 13 May 2023, effective 7 June 2023; official explanatory account.
- Vatican City State, Law N. LXXI, Law on the Sources of Law (1 October 2008), effective 1 January 2009.
- Francis, decree regarding the publication of normative measures in Vatican City State (16 January 2024).
- Leo XIV, apostolic letter on the composition and presidency of the Pontifical Commission for Vatican City State (19 November 2025), amending Fundamental Law art. 8, no. 1.
- Holy See, general information on the Holy See and Vatican City State; Vatican City State, diplomatic relations and judicial function.

19.9 Modern jurisprudence

- John Austin, *The Province of Jurisprudence Determined* (1832), especially Lectures I and V; historical command theory, not a proxy for every positivist theory.
- Hans Kelsen, “On the Pure Theory of Law,” *Israel Law Review* 1 (1966): 1–7, and *Pure Theory of Law*, 2nd ed., trans. Max Knight (Berkeley: University of California Press, 1967).
- H. L. A. Hart, “Positivism and the Separation of Law and Morals,” *Harvard Law Review* 71 (1958): 593–629, and *The Concept of Law*, 2nd ed. (Oxford: Clarendon, 1994).
- Lon L. Fuller, *The Morality of Law*, rev. ed. (New Haven: Yale University Press, 1969).
- Gustav Radbruch, “Statutory Lawlessness and Supra-Statutory Law” (1946), trans. Bonnie Litschewski Paulson and Stanley L. Paulson, *Oxford Journal of Legal Studies* 26 (2006): 1–11.

19.10 Historical and methodological scholarship used as controls

These sources assist historical interpretation; they do not establish present canon law.

- Gisela Striker, “Origins of the Concept of Natural Law,” in *Essays on Hellenistic Epistemology and Ethics* (Cambridge: Cambridge University Press, 1996), DOI.
- René Brouwer, “The Normativity of Law in Nature Revisited: Natural Law in Late Hellenistic Thought,” *Ancient Philosophy* 42 (2022).
- Péter Lautner, “Aristotle and Natural Justice,” *Pázmány Law Review* 8, no. 1 (2021): 57–65.
- Caroline Humfress, “Natural Law and Casuistic Reasoning in Roman Jurisprudence,” in *State and Nature: Studies in Ancient and Medieval Philosophy*, ed. Peter Adamson and Christof Rapp (Berlin: De Gruyter, 2021), 247–266.
- Charles Donahue Jr., “Roman Law: Natural Law, the Law of Nations, and Civil Law,” lecture outline, Ames Foundation.
- Anders Winroth, *The Making of Gratian’s Decretum* (Cambridge: Cambridge University Press, 2000); “Gratian and His Book,” *Oxford Journal of Law and Religion* 10 (2021): 1–15; and “The Legal Underpinnings”, on reform, institutions, schools, and collections.
- David Wagschal, *Law and Legality in the Greek East: The Byzantine Canonical Tradition, 381–883* (Oxford: Oxford University Press, 2015).
- Joseph Goering, “The Internal Forum and the Literature of Penance and Confession,” *Traditio* 59 (2004): 175–227; Wolfgang P. Müller, “The Internal Forum of the Later Middle Ages: A Modern Myth?” *Law and History Review* 33 (2015): 887–913. Used as competing historical controls.
- Lauren Benton and Richard J. Ross, eds., *Legal Pluralism and Empires, 1500–1850* (New York: NYU Press, 2013); compare the methodological discussion in “Legal Pluralism as a Category of Analysis”.
- Brian Tierney, *The Idea of Natural Rights: Studies on Natural Rights, Natural Law, and Church Law, 1150–1625* (Grand Rapids: Eerdmans, 1997).

- R. H. Helmholz, *Natural Law in Court: A History of Legal Theory in Practice* (Cambridge, MA: Harvard University Press, 2015).
- Kenneth Pennington, *The Prince and the Law, 1200–1600: Sovereignty and Rights in the Western Legal Tradition* (Berkeley: University of California Press, 1993).
- Heinz Schilling, *Religion, Political Culture and the Emergence of Early Modern Society: Essays in German and Dutch History* (Leiden: Brill, 1992), especially “Confessionalization in the Empire.” Used as a scholarly control on the confessionalization thesis rather than as a description of every territory.
- Peter Stein, *Roman Law in European History* (Cambridge: Cambridge University Press, 1999), especially chs. 6–7 on natural law, codification, and the later learned tradition.

19.11 Further reading—not controlling authority

- Heinrich A. Rommen, *The Natural Law: A Study in Legal and Social History and Philosophy*, trans. Thomas R. Hanley (Indianapolis: Liberty Fund, 1998).
- John Finnis, *Natural Law and Natural Rights*, 2nd ed. (Oxford: Oxford University Press, 2011).
- Jean Porter, *Nature as Reason: A Thomistic Theory of the Natural Law* (Grand Rapids: Eerdmans, 2005).
- Russell Hittinger, *The First Grace: Rediscovering the Natural Law in a Post-Christian World* (Wilmington, DE: ISI Books, 2003).
- James A. Coriden, Thomas J. Green, and Donald E. Heintschel, eds., *The Code of Canon Law: A Text and Commentary* (New York: Paulist Press, 1985); John P. Beal, James A. Coriden, and Thomas J. Green, eds., *New Commentary on the Code of Canon Law* (New York: Paulist Press, 2000). Commentary aids; verify later amendments and controlling law.
- Ladislav Orsy, *Theology and Canon Law: New Horizons for Legislation and Interpretation* (Collegeville, MN: Liturgical Press, 1992).

19.12 Rights and evidence boundary

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